

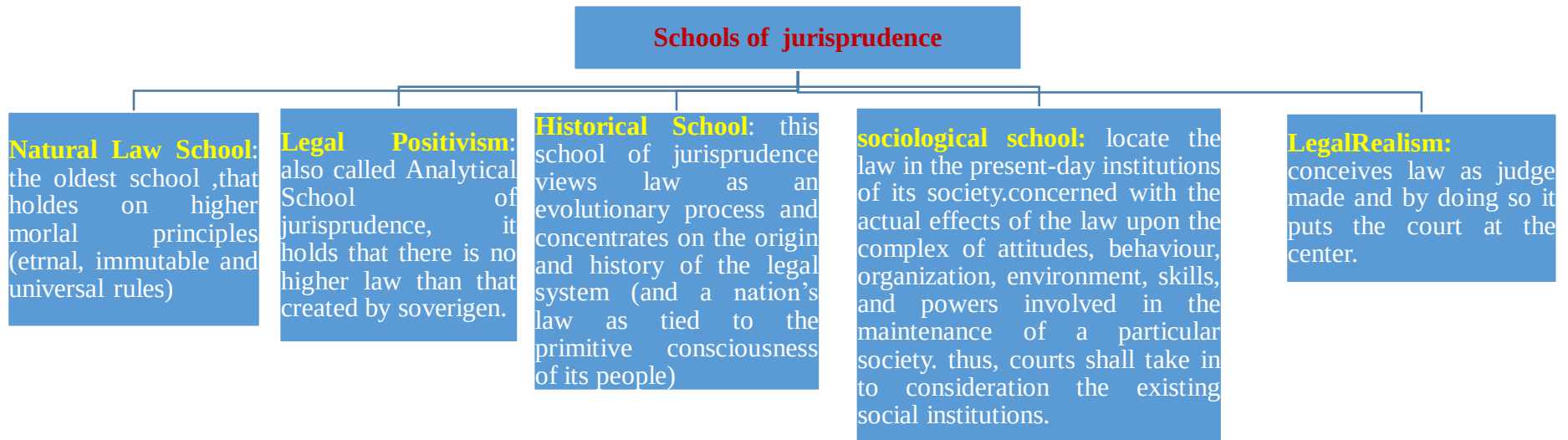
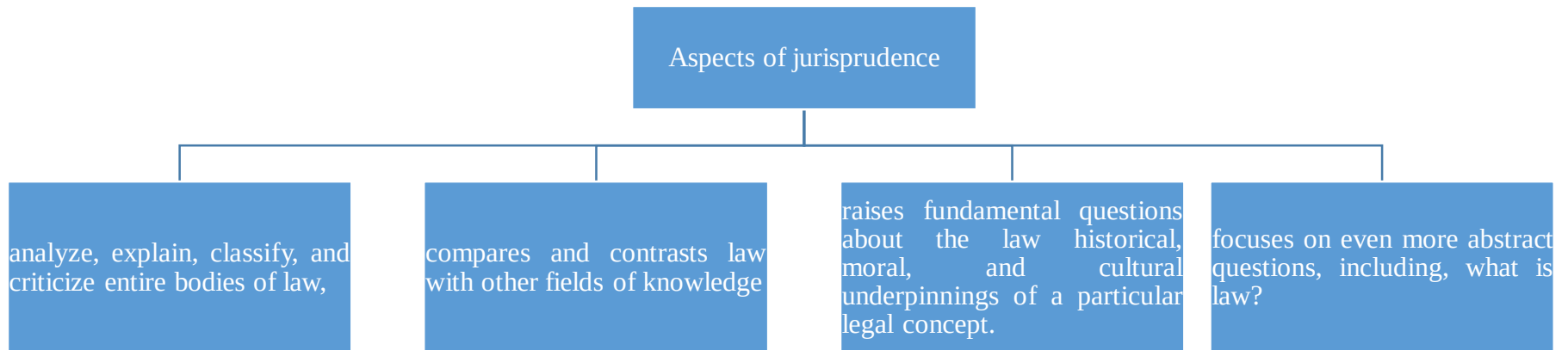
Jurisprudence Short Note

Part One

Let's Enjoy on Jurisprudence: Simplest Way of Understanding: You will love it what you hate it!!!

MIKI

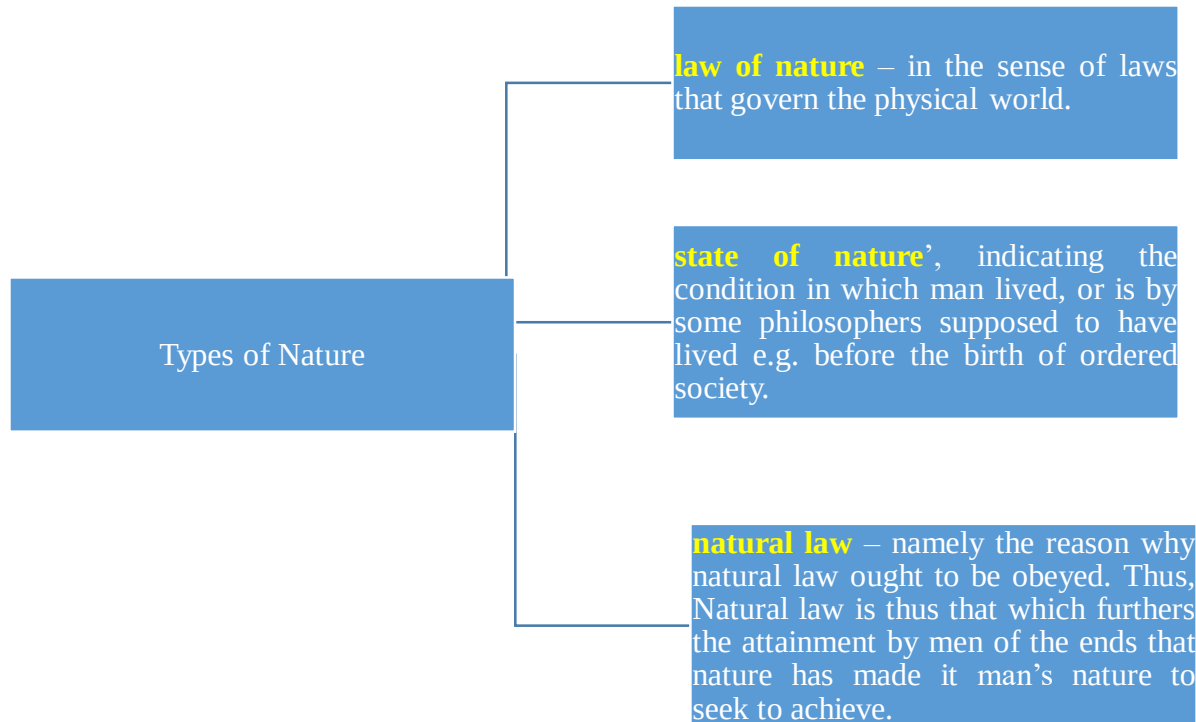
MICKY SHORT NOTE CENTER | mickysmart43@gmail.com +251925503628



Chapter Two

Classical Natural Law Theories

? Some confusing and essential terms that should be considered in studying natural law



Ancient Greece: Natural Law as Source of Justice and Virtue

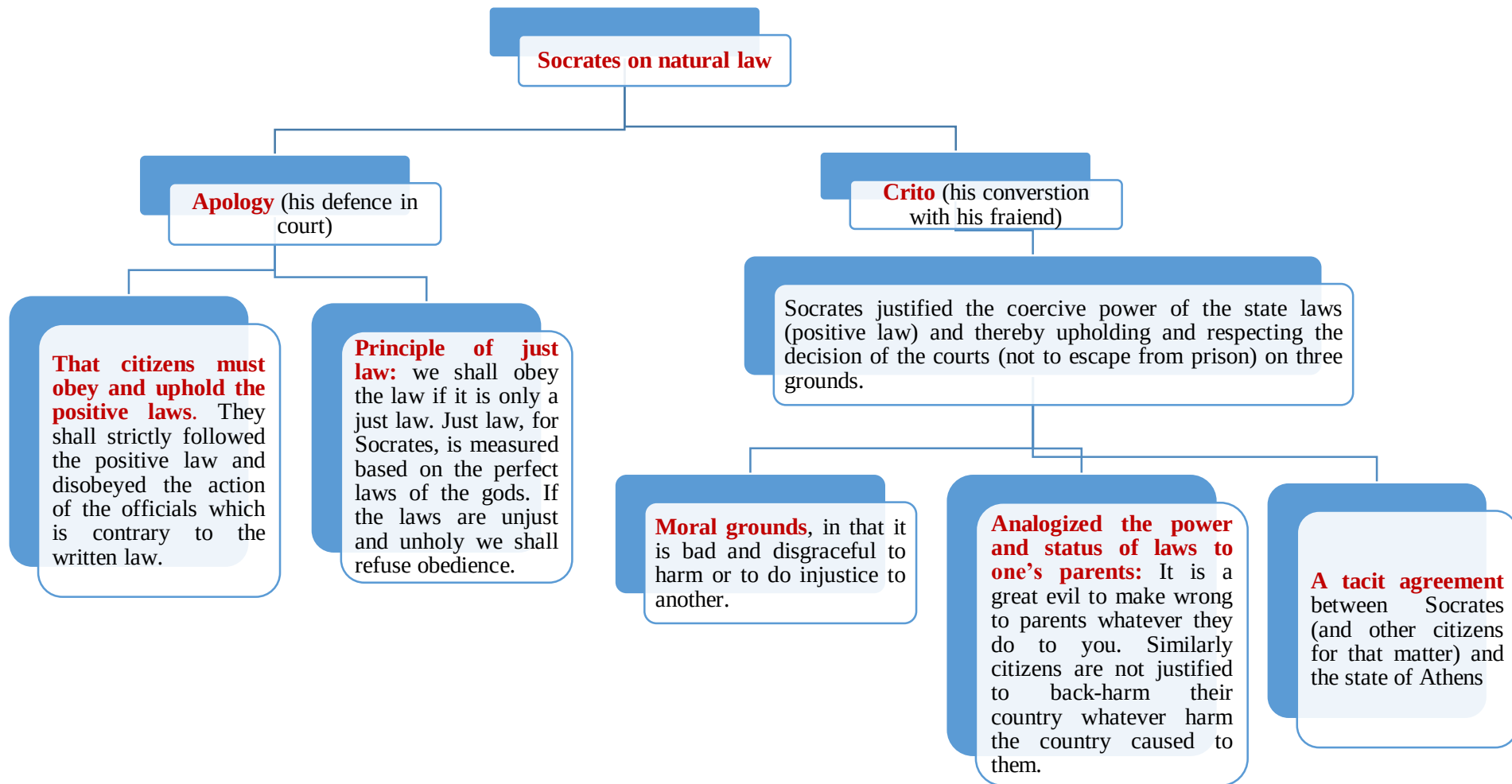
- ✓ Two giants whose legacy still survives in today's world bestride through the philosophy of the ancient world. In addition to others forms of philosophies, they contributed a lot to the classical Hellenistic legal theory. These are Plato and Aristotle. Moreover Socrates is dealt here in under.

Socrates

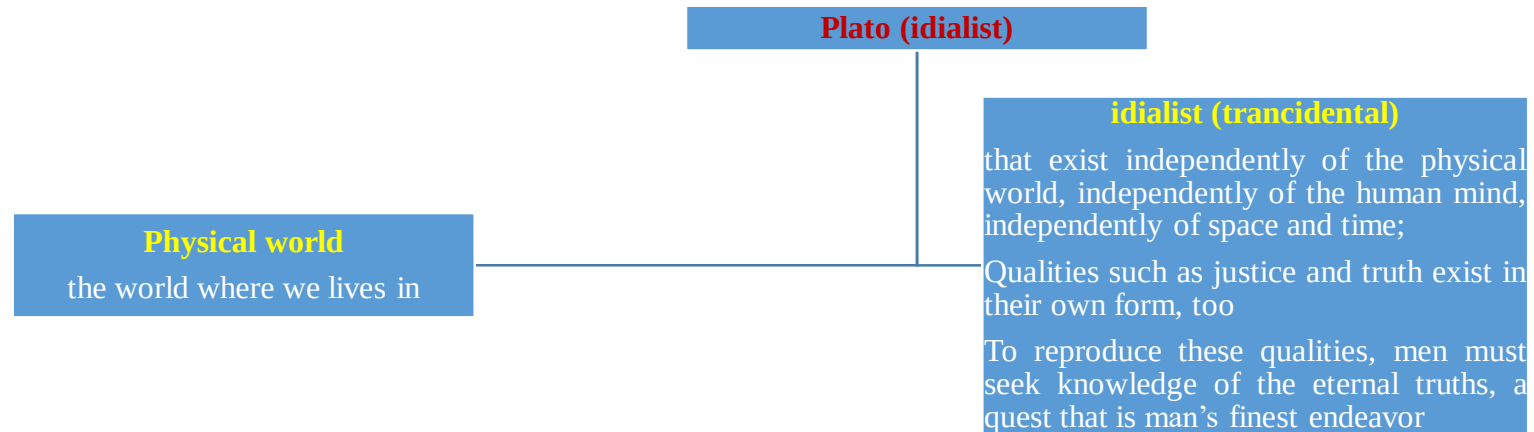
Why he was prosecuted?

- ✓ He was prosecuted because;
 - + He was said to be corrupting the youth and
 - + He did not believe in the gods of the state.

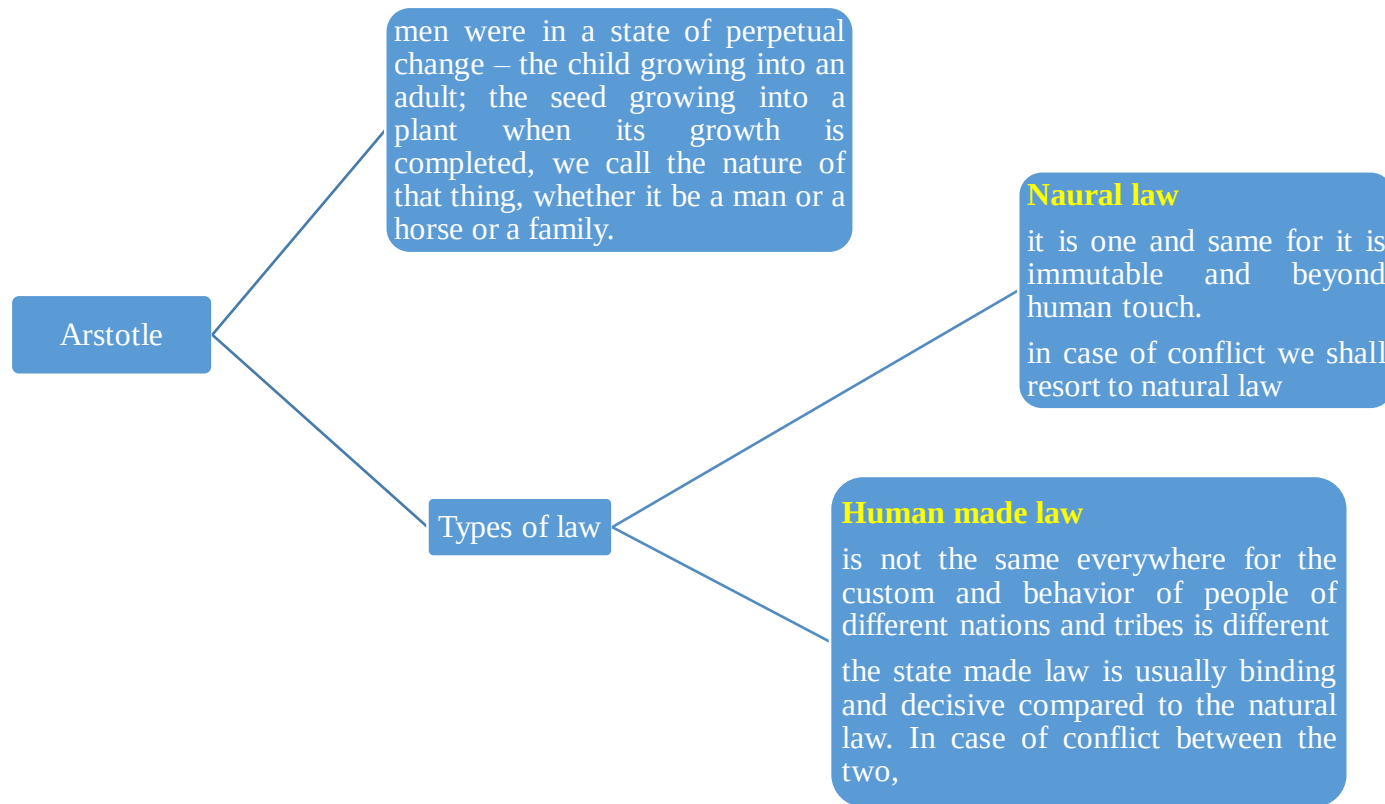
What are the defenses raised by Socrates and discourse made between Socrates and his friend Crito in prison?



Plato

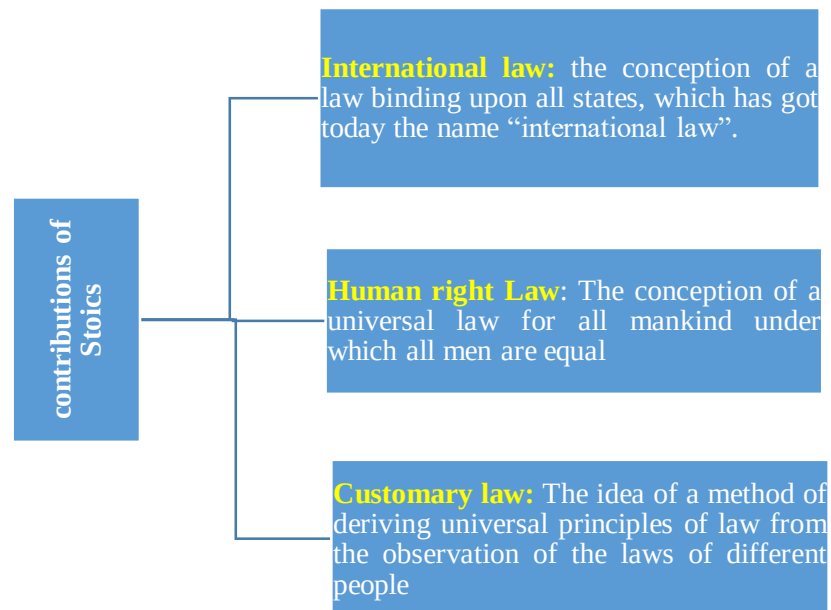


Aristotle



The Stoics: Natural Law as a Reason

What are the major contributions of Stoics to the modern legal traditions?



Cicero

What is law?

- ✓ Law is the highest reason, implanted in nature, which commands what ought to be done and forbids the opposite. True law is right reason in agreement with nature. To curtail this law is unholy, to amend it illicit, to repeal it impossible. The Stoic's ideal is to live consistently with nature. Throughout our lives we ought invariably to aim at morally right course of action.
- ✓ Law is the highest product of the human mind which is in tune with the elemental force of nature. The validity of human law depends upon its harmony with these forces.

Seneca

What is law?

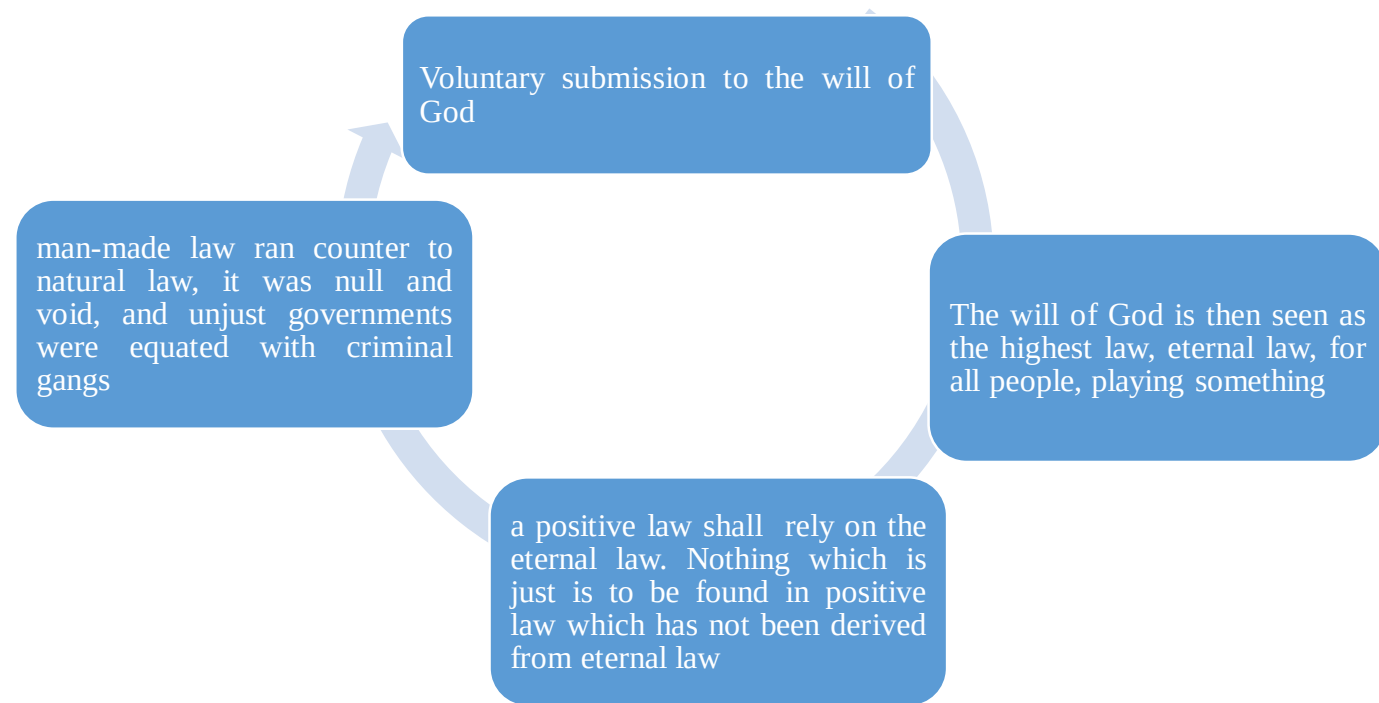
- ✓ Man is a spirit and his ultimate goal is the perfection of his reason in that spirit. Because man is a rational animal, his ideal state is realized when he has fulfilled the purpose for which he was born.
- ✓ And what is it that reason demands of him? Something very easy – that he live in accordance with his own nature. Yet this is turned into something difficult by the madness that is universal among men; we push one another into vices. And how can people be called back to spiritual well-being when no one is trying to hold them back and the crowd is urging them on?
- ✓ The crude, tribal jus civile (“civil law”) of the Romans was thus transformed into a natural-law-based jus gentium (law applying to all people), a set of principles common to all nations and appropriate,

Christianity: Natural Law as Morality

- ✓ Christianity taught – ‘Love one another’, and it added ‘and if you do, there is a reward – life everlasting.

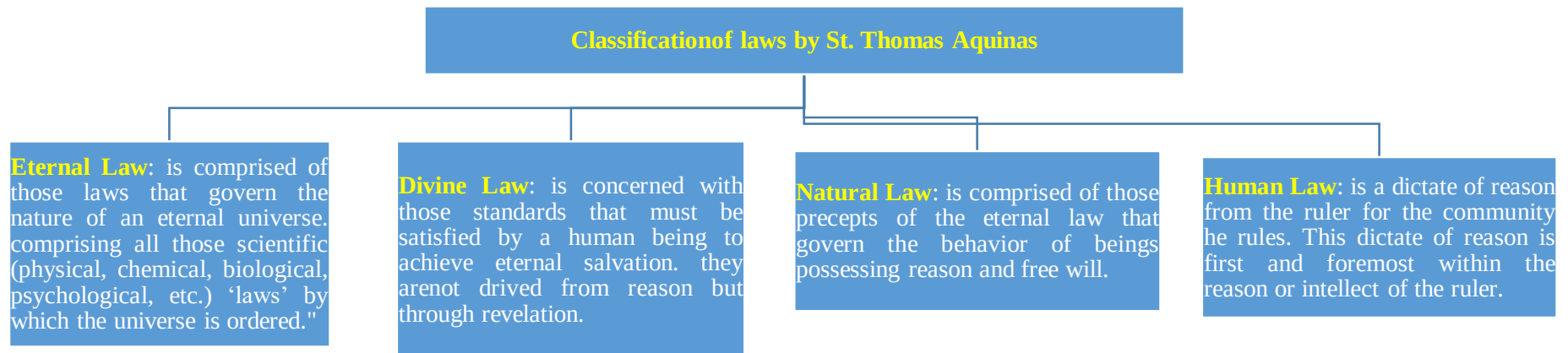
A. St. Augustine of Hippo

- ✓ he wrote ‘if a law be unjust, it is no law at all’
- ✓ In his greatest work, *De Civitate Dei* (the City of God) voluntary submission to the will of God



St. Thomas Aquinas

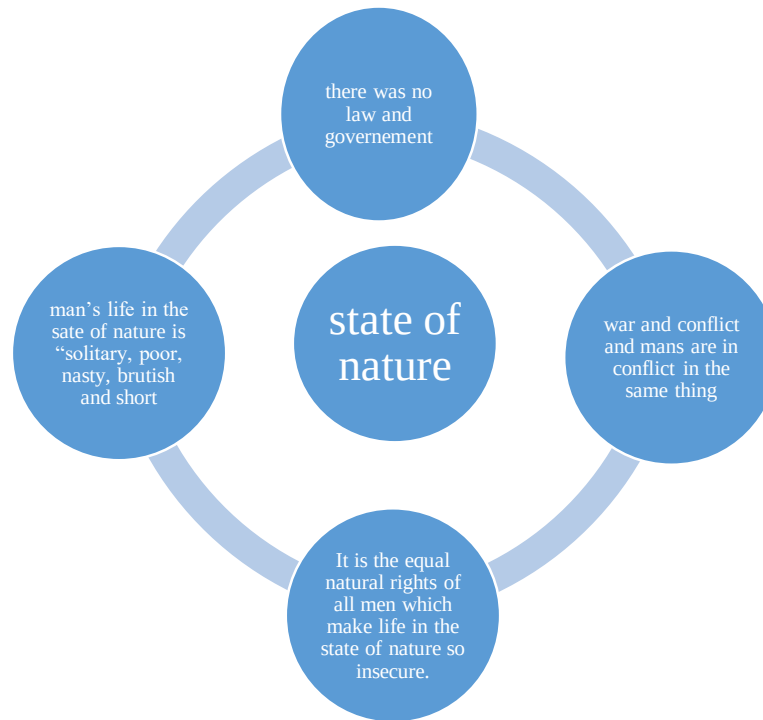
- ✓ the essential quality setting human beings apart from the rest of the animal world was that of reason
- ✓ All men naturally possess an internalized divine spark of reason, which serves as the guide to an autonomous and responsible decision making process.
- ✓ A human law (i.e., that which is promulgated by human beings) is valid only insofar as its content conforms to the content of the natural law.



Nature of Man and Justification for Law

Thomas Hobbes

- ✓ Hobbes argued that an unlimited governmental authority is the only alternative to harness the wild and evil nature of mankind
- ✓ who believes that man by nature is evil and self-oriented,



John Locke

- ✓ Locke, in his book, *The Second Treatise of Civil Government*, started his argument from an opposite premise that claims the human decency. The state of nature is, for Locke, a state of perfect freedom and equality.
- ✓ The state of nature as one of peace in which most men respect the lives, liberties, and estates of others.
- ✓ These are the natural rights of man, given to him by the law of nature which commands that “no one ought to harm in his life, health, liberty, and possession”

- ✓ Of the natural rights of man, none is regarded by Locke as more important than the right to property
- ✓ The appropriation of private property, the labour theory and the absence of effective enforcement of measures against the violators of the right of other necessitate the enactment of law.
- ✓ Thus, if government is to be set up to improve man's natural condition, it must be based upon the consent of the governed. To setup a government the people as a political entity must first be established by a social contract

Kelsen's Criticism on Natural Law Theory

A. Natural law confuses value and reality

- ✓ Natural law, he says, obliterates the essential difference between the scientific laws of nature, the rule by which the science of nature describes its objects, and the rule of ethics, or morality.
- ✓ Value is not immanent in natural reality. Hence value cannot be deduced from reality. It does not follow from the fact that something is, that is ought to be or to be done, or that is ought not to be or to be done.
- ✓ The fact that in reality big fish swallow small fish does not imply that the behavior of the fish is good or bad. There is no logical inference from the 'is' to the 'ought', from natural reality to moral or legal value.
- ✓ What is law is what is decided to be law by the law-maker, not some other thing, ought. since the law maker once decide by taking the value judgment on conflicting interest (confidentiality vs. publications)

B. Good/Bad contradiction

- ✓ Natural lawyers justify positive law (man-made or human law) on the ground that these are needed because of man's badness. At the same time their doctrine requires an assumption that man is good, because it is from human nature that the principle of natural law are to be deducted.
- ✓ Thus natural lawyers entangle themselves in a contradiction

c. Insincerity

- ✓ They fail to carry their doctrine to its logical conclusion.
- ✓ According to their doctrine, if positive law conflicts with natural law, it is void. But they did not apply it.

d. Absolute values and Relative values

- ✓ That ethical judgments and values are relative was the tenet of Greek philosophers known as Sophists.
- ✓ For them there can be belief, but not knowledge, in the sense of knowledge of absolute truth. All knowledge is relative to the person seeking it.
- ✓ 'There is one nature but we have different systems of law; different beliefs of goodness and badness.'

What are the common features of natural law?

✓ **they are;**

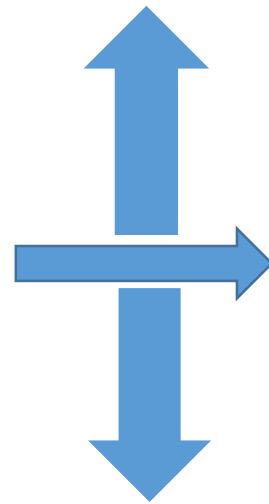
- ✚ is not made by human beings;
- ✚ is based on the structure of reality itself;
- ✚ is the same for all human beings and at all times;
- ✚ is an unchanging rule or pattern which is there for human beings to discover;
- ✚ is the naturally knowable moral law;
- ✚ is a means by which human beings can rationally guide themselves to their good

Unit Three **The Revival of Natural Law**

Procedural Natural Law: Lon L. Fuller

- ✓ Fuller considered that debate upon the morality of law had become confused in part through a failure adequately to distinguish between two levels of morality which he defined as moralities of ‘aspiration’ and of ‘duty’.

What is the difference between morality of aspiration and duty?



The morality of aspiration

is the morality of the Good Life, of excellence, of the fullest realization of human powers... Where the morality of aspiration starts at the top of human achievement.

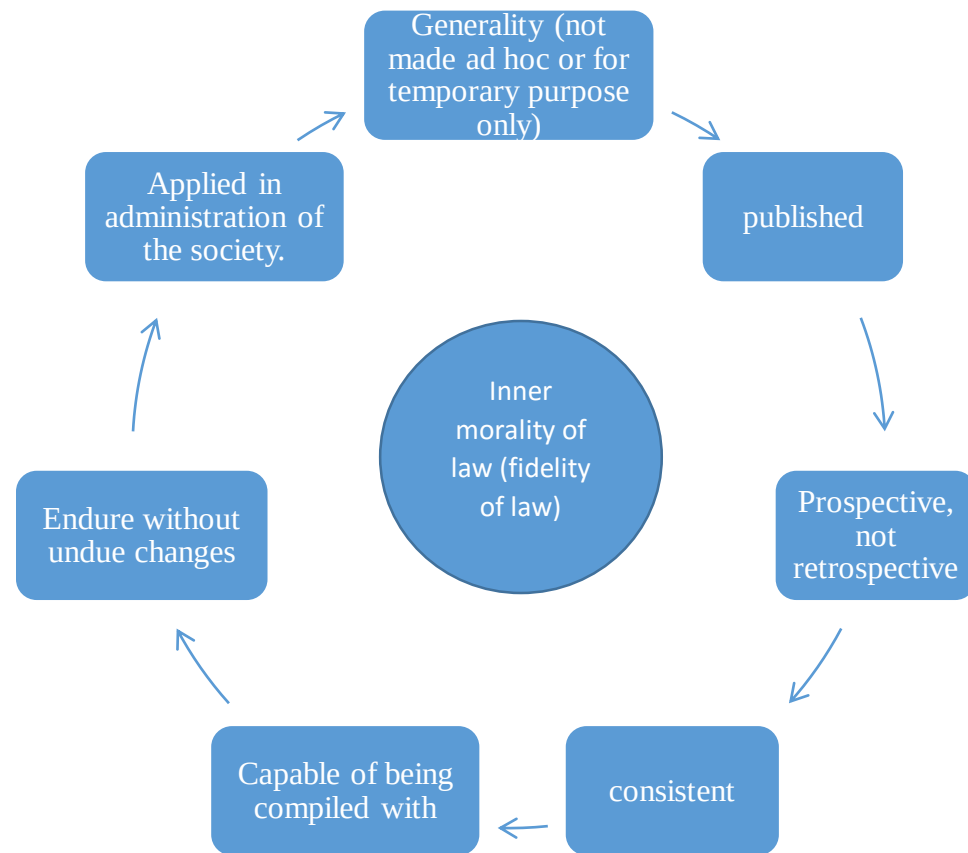
Somewhere along this scale there is an invisible pointer that marks the dividing line where the pressure of duty leaves off and the challenge of excellence begins.

the morality of duty

starts at the bottom. It lays down the basic rules without which an ordered society is impossible, or without which an ordered society directed toward certain specific goals must fail of its mark. (e.g law cannot make people 'good' but rather establish a base for the inhibition of 'badness' from which a good life may develop.

What are the substantive requirements that a law should fulfil?

- ✓ Fuller lists eight qualities of excellence. In a legal system the laws must be fulfilled.
- ✓ These qualities make up the 'inner morality of law'



Criticisms on Fuller

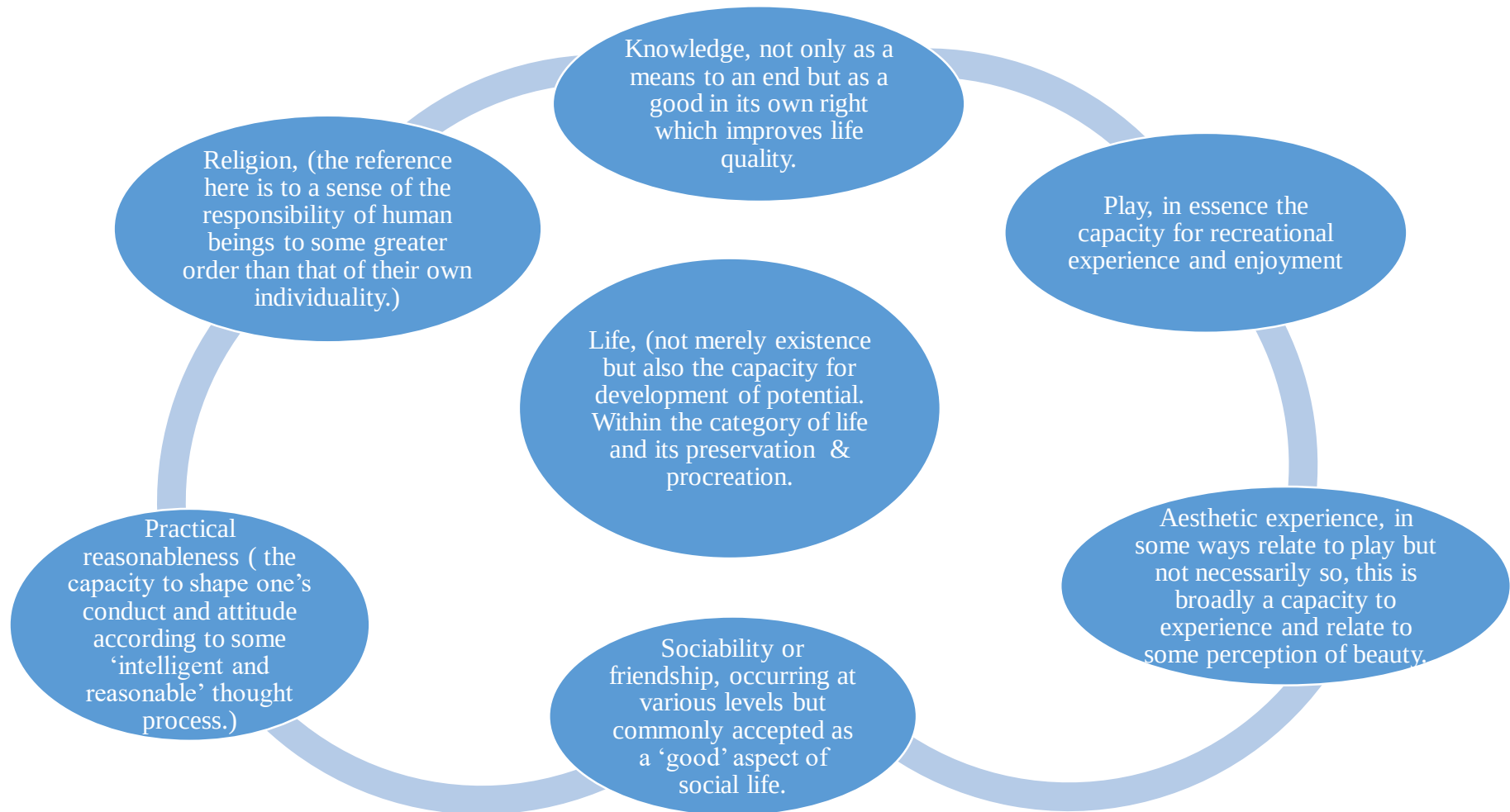
- ✓ Fuller's key idea is that evil aims lack 'logic' and 'coherence' that moral aims have. The point is that the idea of principles in themselves with the attendant explanation at a general level of what is to be achieved (elimination of non-Aryan races) and consistency is insufficient to establish the moral nature of such practices.

- ✓ The forces of this idea of reciprocity is that however much we can imagine 'evil' legal systems of a highly efficient kind appear to comply with the 'inner morality' of law, evil legal systems built on such lines can still exist.

Substantive Natural Law: John Finnis

- ✓ He tries to offer a "neo-Aquinian" natural law philosophy which does not presuppose a divine being. Instead of speaking, as would Plato, about the Form of the Good, or seeking the Good, he will speak about human desires to pursue "basic *goods*" in life.
- ✓ Therefore the goods that Finnis speaks of are not moral goods, but they are necessary objects of human striving

What are the basic needs of human nature?



What are the defense of Finnis on natural law?

- a. Finnis denies that natural law derives from the objectively determinable patterns of behavior, but instead asserts it is ascertainable from inward knowledge of innate motivations.
- b. Natural law does not entail the view that law is not law if it contradicts morality.

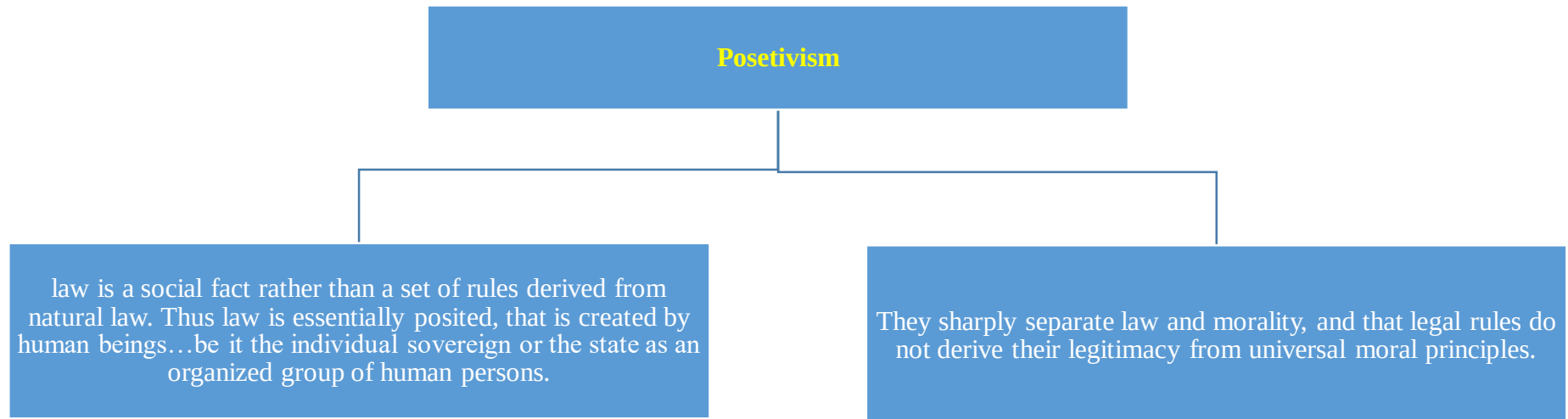
What is the problem of Finnis methodology?

- ✓ By employing the principle that goods are self-evident, rather than derived from objectively observable facts, Finnis not only avoids being accused of deriving an 'ought' from 'is', but also deprives us of any attack on his methodology.

UNIT FOUR

POSITIVISM (Analytical Jurisprudence)

What are the core ideas of Positivism?



What are the major value or contribution of positivism to the present day legal system?

- a. **Accessibility of the law:** by requiring that all law be written or somehow communicated to society, *propagated by Jeremy Betham during his attack of the common law.*
- b. **Limits the powers of Judges:** positivism reduces the power of the judge to the application of laws, it does not allow judges to make laws.

The Command Theory: John Austin's Positivism

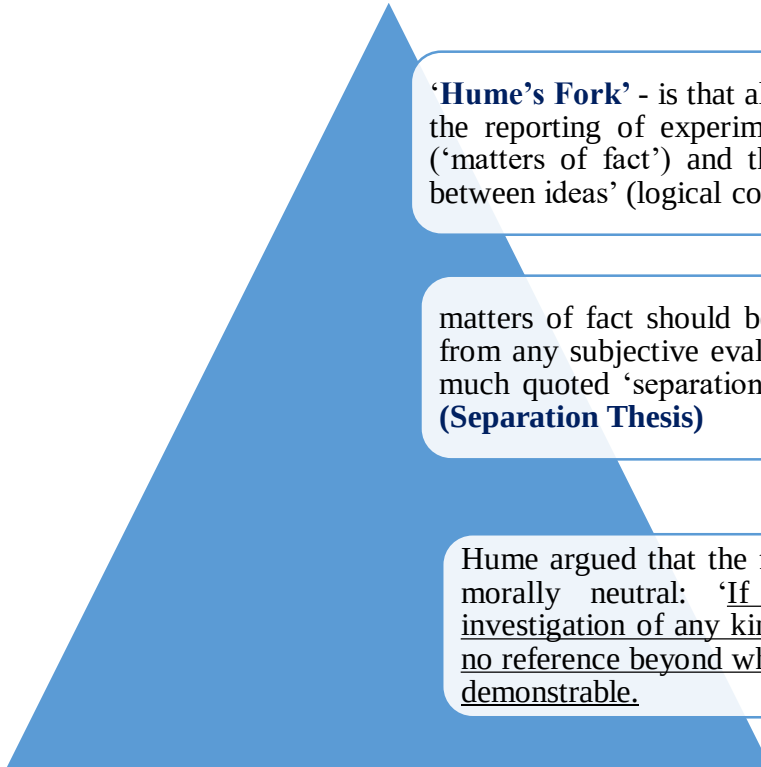
- ✓ The main proponent of this school is John Austin who boldly tried to define law on the bases of state authority. He was influenced by Hobbes and Bentham. In here we shall see David Hume, Jermy Bentham, and John Austin himself.

Influence of David Hume

What are the aims of David Hume philosophy?

- ✓ Hume's fundamental purpose in his philosophical writing was twofold:
 - a. to challenge the traditional framework of moral philosophy in such a way that morality and law would be humanized by becoming more relative to human interests; and
 - b. To undermine the overblown pretensions to knowledge of the rationalist philosophers of the Enlightenment.

What are the good sense or proper law for David Hume?



‘Hume’s Fork’ - is that all investigation should be confined to the reporting of experimental observation on the one hand (‘matters of fact’) and the rational elucidation of ‘relations between ideas’ (logical connections) on the other.

matters of fact should be understood in complete independence from any subjective evaluation of the factual subject matter (the much quoted ‘separation of fact and value’ or ‘is’ and ‘ought’).
(Separation Thesis)

Hume argued that the faculty of human reason is perfectly inert and morally neutral: ‘If reason is morally neutral, the rational investigation of any kind of human behavior or institution will make no reference beyond what is either empirically observable or logically demonstrable.’

Jeremy Bentham

- ✓ The beginning of the decline of natural law theory can be dated quite precisely from the time of Bentham’s scathing attack on Blackstone’s (1723-80) Commentaries on the Laws of England.

What is common law practices for Bentham?

Jeremy Bentham Vs common law

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graph TD; A[Jeremy Bentham Vs common law] --> B[Doges law]; A --> C[The double fountain effect];
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Doges law: that is, as the practice of waiting for one's dog to do something wrong, and then beating it.

The 'double fountain effect', whereby the decisions of judges are seen as capricious selection of whichever precedent suits the judge's prejudice, the doctrine to a magic vessel from which red or white wine could be poured, according to taste.

If so, what are the solutions provided by Bentham for common law?

- ✓ Bentham's overriding passion for legal reform required the kind of clarification which would mercilessly expose the shortcomings, the corruption and obfuscation which he found in the common law as it existed at the turn of the nineteenth century.
- ✓ This was a matter of dispassionate factual reporting of the nature and workings of law, which he termed 'expository' jurisprudence
- ✓ This was precisely what Bentham accused traditional legal writers of doing. Blackstone, as one of the most eminent of these writers, was singled out by Bentham as a prime example of one who clothed moral preaching in the language of law.
- ✓ When, by contrast, law is analyzed according to Bentham's expository principles, the way is prepared for a clear-headed 'censorial' jurisprudence, subjecting the law to moral criticism, based on the principles of utility.

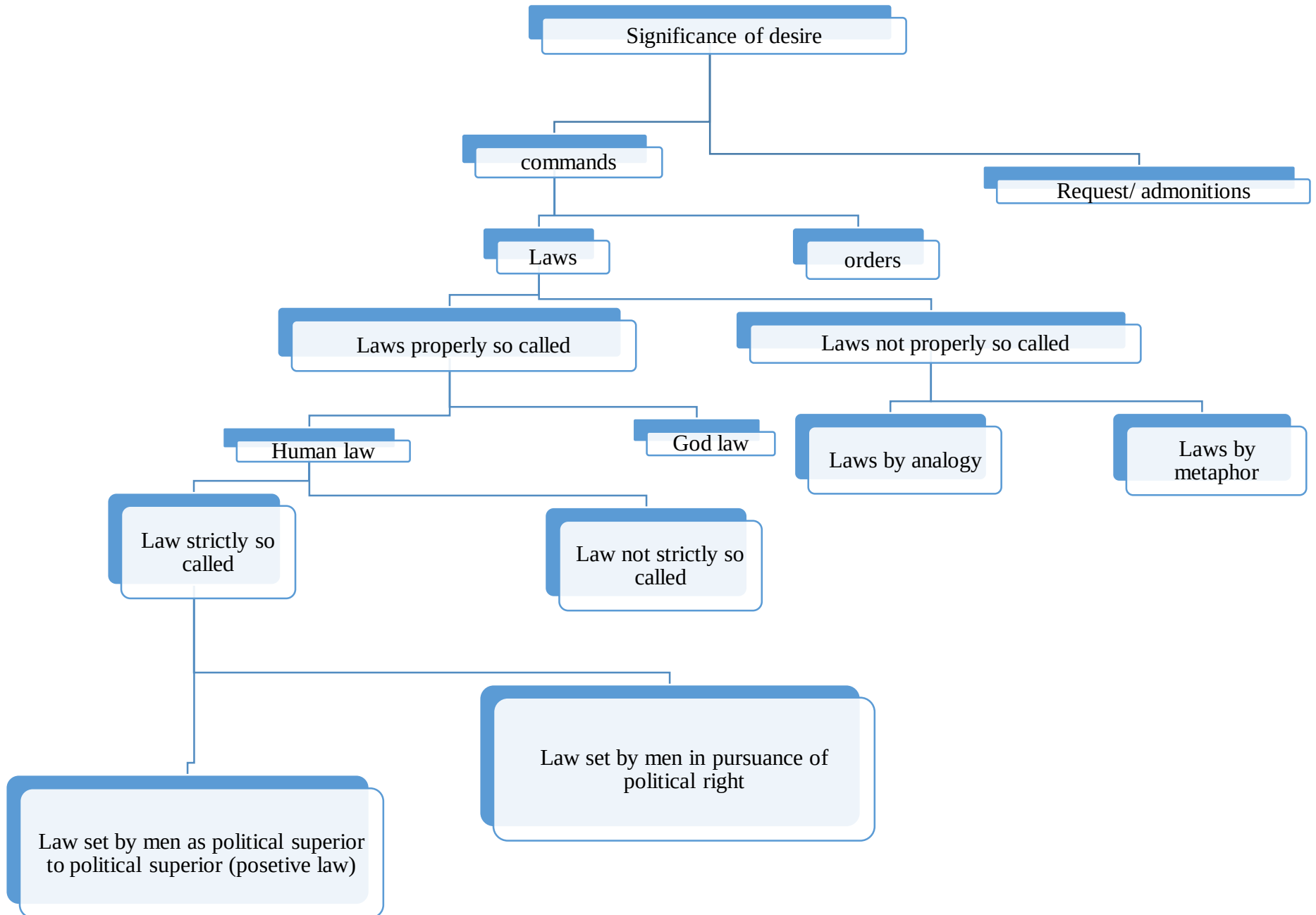
John Austin on Positivism and Separation thesis

What is the premises or central ideas of Austin philosophy?

- ✓ Law is a command of the sovereign enforced by sanction.

Which law is the subject of Positivist theory?

- ✓ The subject-matter of jurisprudence, as he understands it, is positive law, 'law, simply and strictly so called: or law set by political superiors to political inferiors'. Immediately, law is defined as expression of power



What is the difference between positive law and positive morality?

- A. **Positive law.** These are laws set by superior acting as such or by people acting in pursuance of legal rights conferred on them by political superiors (that is acting as delegates of political superiors in making laws).
- B. **Positive morality:** rules laid down by persons having power over others but not as political superiors or in pursuance of legal right.
 - + Austin has no doubt that the term 'law' can be used here 'with absolute precision or propriety'. Since he uses the word 'power' in a general sense, it seems to include the capacity of any authority figures – for example, priests or religious leaders, employers, teachers, parents, guardians or political orators – to control or influence the actions of followers, dependents or those in their charge.
 - + Austin clearly regards rule-making in such cases as significant in shaping the attitudes, opinions or moral sentiments of individuals or groups.

What are the major categories of positive morality?

- ✓ they have two forms:
 - a. **Laws 'by analogical extension':** those without particular creators but set by the opinion or sentiment of an indeterminate body of people – that is, by public opinion or community opinion. Austin calls these authorless rules; they are not laws 'properly so called' *e.g. Laws of fashion, etiquette or honor.*
 - b. **Scientific laws** are not laws in the jurisprudential sense. They are the regularities of nature which science discovers but which are not laid down as laws.

What is law for Austin?

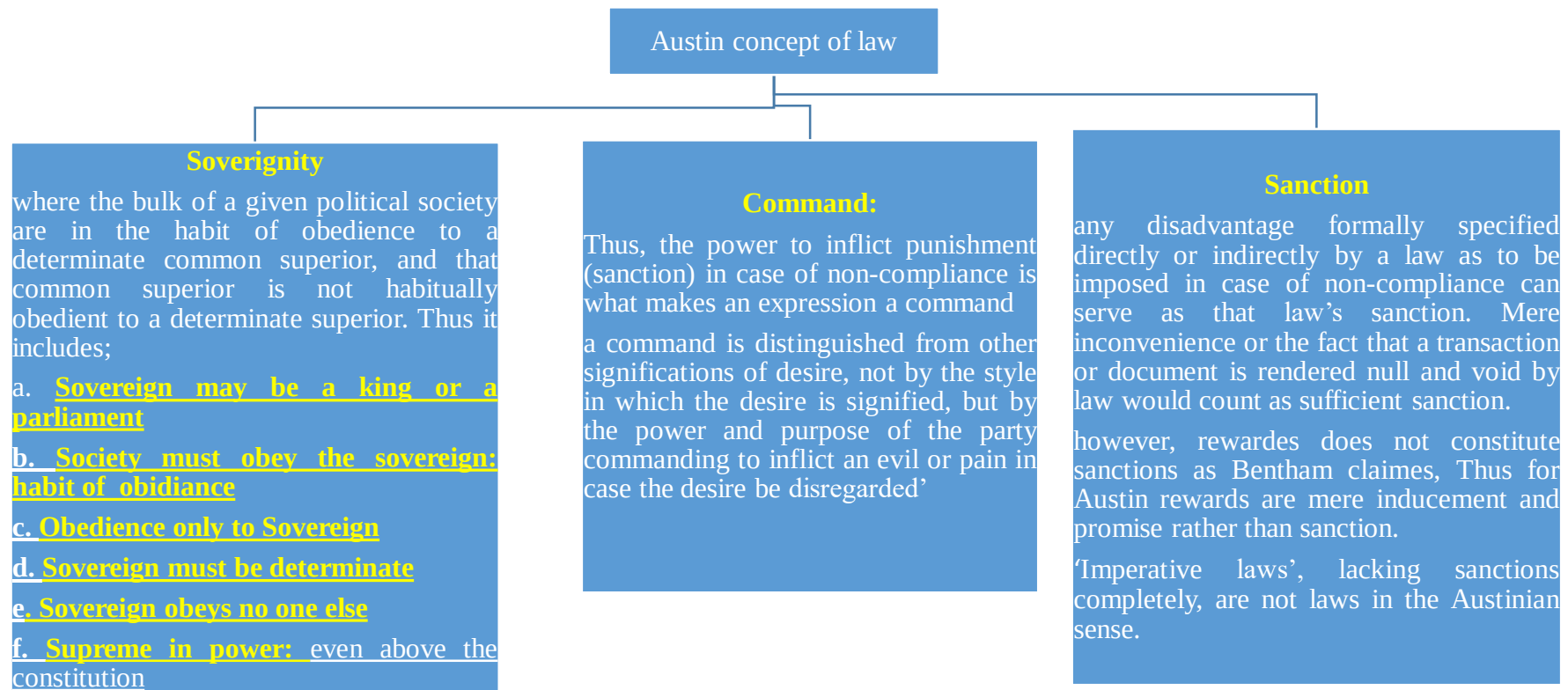
- i. The term 'law' is often improperly applied to rules or regularities that are in no strict sense 'legal'; but
- ii. The concept of law can properly embrace more than most lawyers would accept. Like many social scientists writing long after him, Austin considers that some rules created 'privately' outside the particular provisions or procedures of the legal system of the state can usefully be recognized as law.
- iii. On the other hand, only positive law is the appropriate concern of jurisprudence, which as we shall see in the next sections is backed and enforced by the state.

Austin's Concept of law

What is the premises of Austin definition of law?

✓ *Law is a command of the sovereign enforced by sanction.* thus the elements of a law are;

- ✚ Command
- ✚ Sovereign
- ✚ Sanctions



The Separation Thesis

- ✓ *The existence of law is one thing, its merit or demerit is another... Austin*

What to separate?

- ✓ A law is valid law if it is set by a sovereign. It is valid if it exists, regardless of its moral content. If it is commanded by the sovereign, if the law is decreed, placed in position, posited, then it is valid law. Thus, what he called as 'positive law' is a law whatever its source or contents.
- ✓ A positivist is, hence, one who regards a law as being valid not by reference to some higher law or moral code, but by reason of no more than its existence.
- ✓ **a clear separation between;**
 - + *the question and what the law ought to be (it is possible one can make reference to higher laws) and*
 - + *The determination of what the law is.*

Criticism on Austin

- ✓ Hart made a critical criticism on Austin's concept of law and his criticisms fall under three main heads;

Hart criticism on Austin

Laws as we know them are not like orders backed by threats; on three grounds;

a. But there are many types of laws that do not resemble orders backed by threats

e.g. Laws that provide rights, explanatory laws, public laws, power conferring laws and administrative laws, procedure, jurisdiction and judicial process

b. The range of application of law:

For Austin the sovereign is not bound by the law it enacts. But in many systems of law legislation has a force that is binding on the body that makes it.

c. The mode of origin of law: Austin assumes the sovereign as the only source of law. But in reality, laws can be created by other bodies outside the law maker (e.g. customary law)

Austin's notion of the habit of obedience is deficient:

that law should not be based on one particular body. It rather must be a system that gives uninterrupted continuity. What is in fact found in any legal system is the existence of rules which secure the uninterrupted transition of power from one law-maker to the next.

e.g. in transfer of power and see our civil code which is uninterrupted for 40 years even if the sovereigns are changed.

Austin's notion of sovereignty is deficient:

according to Austin, if law exists within a state, there must exist a sovereign with unlimited power. But when we examine states in which no one would deny that law exists we find supreme legislatures, the powers of which are far from unlimited.

Pure Theory of Law: Hans Kelsen

Why it is pure theory of law?

- ✓ Kelsen found out that natural law has flaws and it contaminates law with other standards, which makes it impossible for scientific study of the subject matter. Hence, instead, Kelsen suggested a 'pure' theory of law
- ✓ It aims at cognition focused on the law alone" and this purity serves as its "basic methodological principle."

The Basic Norm (Grundnorm)

What is norms and basic norms?

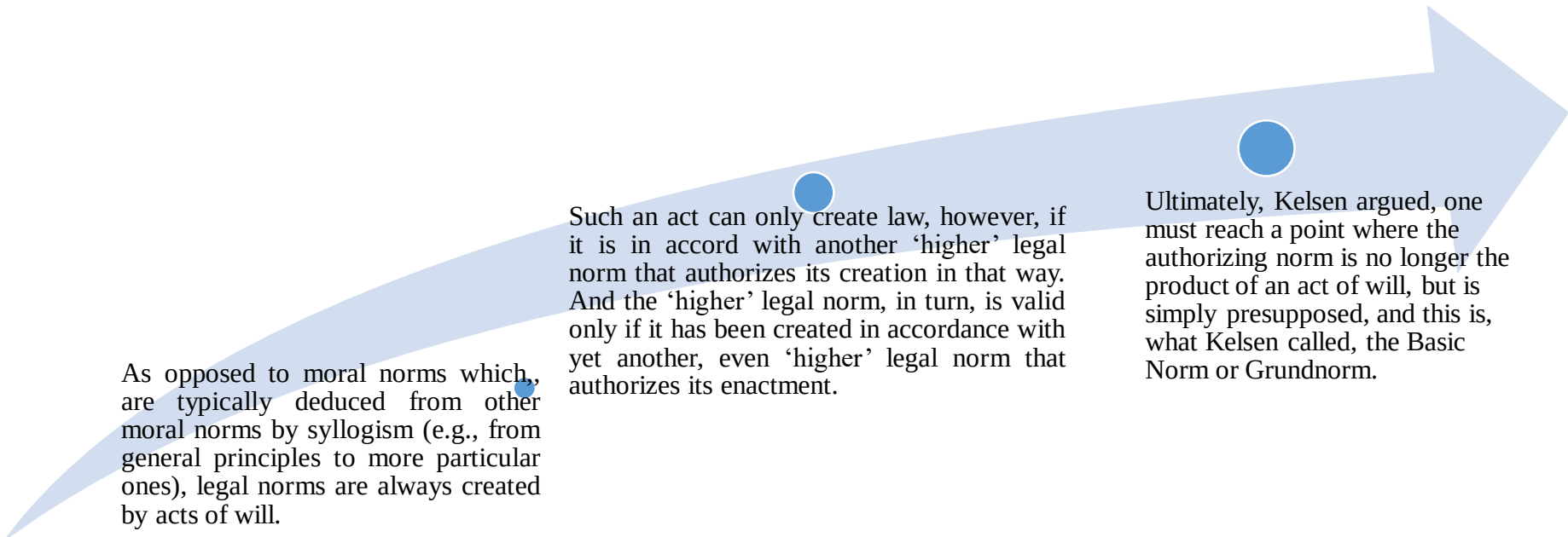
- ✓ Norms are 'ought' statements, prescribing certain modes of conduct.
- ✓ Unlike moral norms, however, Kelsen maintained that legal norms are created by acts of will. They are products of deliberate human action.
- ✓ *These are actions and events taking place at a specific time and space. To say that what we have described here is the enactment of a law, is to interpret these actions and events by ascribing a normative significance to them.*
- ✓ The gathering, speaking and raising of hands, in itself, is not the law; legal norms are essentially 'ought' statements, and as such, cannot be deduced from factual premises alone.

How is it possible, then, to ascribe an 'ought' to those actions and events which purport to create legal norms?

- ✓ We ascribe a legal ought to such norm-creating acts by, ultimately, **presupposing it**. Since 'ought' cannot be derived from 'is', and since legal norms are essentially 'ought' statements, there must be some kind of an 'ought' presupposition at the background, rendering the normativity of law intelligible.

If so, how the validity of the grand norms are attained?

- ✓ More concretely, Kelsen maintained that in tracing back such a ‘chain of validity’ one would reach a point where a ‘first’ historical constitution is the basic authorizing norm of the rest of the legal system, and the Basic Norm is the presupposition of the validity of that first constitution.
- ✓ The Grundnorm or Basic Norm is a statement against which all other duty statements can, ultimately, be validated. The Basic Norm is ultimately a sort of act of faith--it is the belief in a principle beyond which one cannot go and which ends up being the foundational principle for all subsequent legal statements. *You cannot "go beyond" the Grundnorm because it is an improvable first step.*
- ✓ *This is the only norm which cannot itself be questioned or validated.* For example, the relevant actions of a court official, a police officer, a solicitor, a gaoler...



As opposed to moral norms which, are typically deduced from other moral norms by syllogism (e.g., from general principles to more particular ones), legal norms are always created by acts of will.

Such an act can only create law, however, if it is in accord with another ‘higher’ legal norm that authorizes its creation in that way. And the ‘higher’ legal norm, in turn, is valid only if it has been created in accordance with yet another, even ‘higher’ legal norm that authorizes its enactment.

Ultimately, Kelsen argued, one must reach a point where the authorizing norm is no longer the product of an act of will, but is simply presupposed, and this is, what Kelsen called, the Basic Norm or Grundnorm.

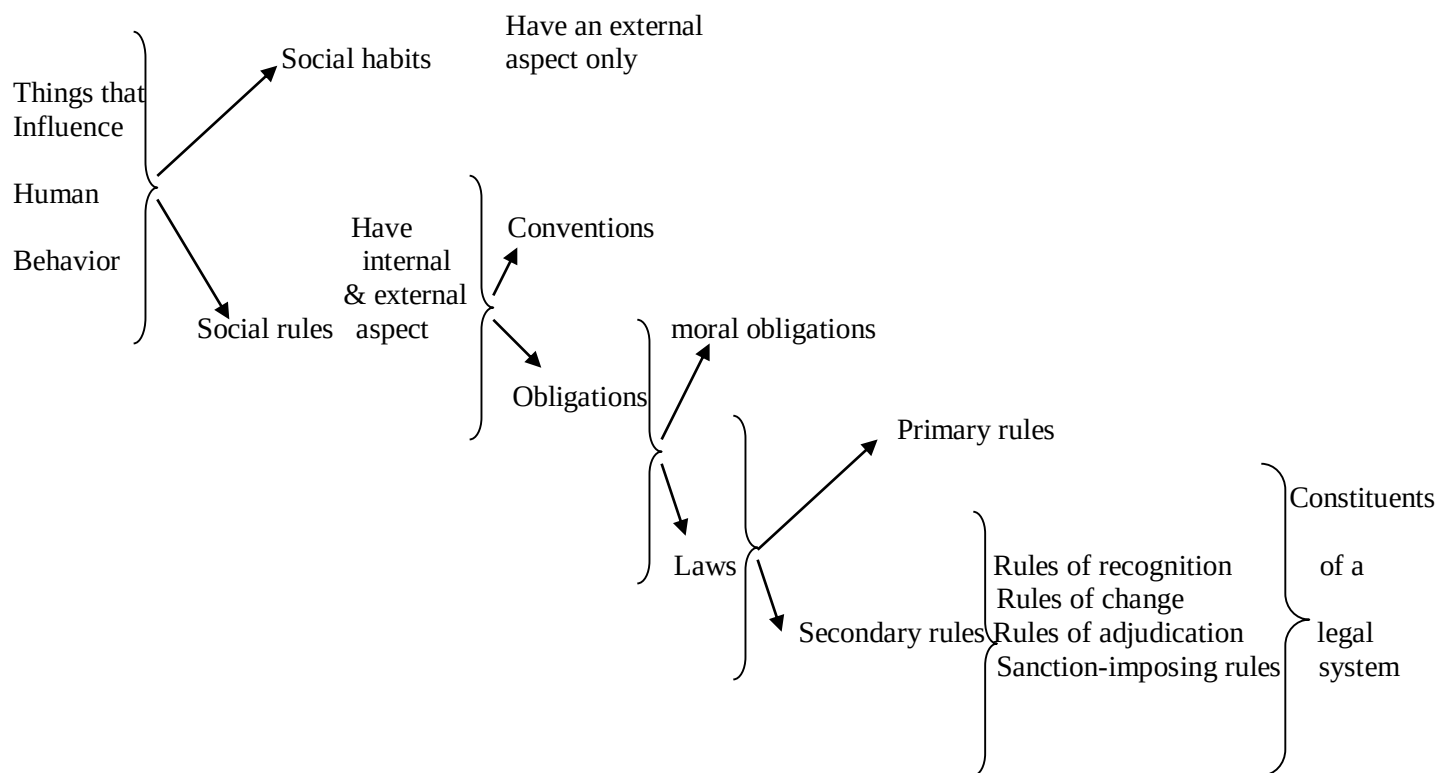
What are the basic functions of grand norms?

✓ Kelsen attributed two main explanatory functions to the Basic Norm:

- a. it explains both the unity of a legal system and
- b. The reasons for the legal validity of norms.

H L A Hart- The Concept of Law

Having rejected the command theory of Austin, as discussed in the Austin's part, Hart develops and rebuilds his own positivist theory of legal validity.



A. Social Habits vs. Social Rules

What are social habits? Are they rules?

- ✓ Social Habits are not rules. If some people in the group do not go to the cinema on Saturday evenings, this will not be regarded as a fault, nor render them liable to criticism. e.g. going cinema every Sunday
- ✓ When group have a particular habit, although this may be observable by an outsider, no member of the group may be conscious of the habit. So it has only external element.

What are social rules? Are they rules?

- ✓ Social rule might be a rule that a man should take his hat off in church. If someone breaks the rule, this is regarded as a fault, and renders the offender liable to criticism. Such criticism is generally regarded as warranted, not only by those who make it but also by the person who is criticized.
- ✓ Further, for a social rule to exist, at least some members of the group must be aware of the existence of the rule, and must strive to see that it is followed, as a standard, by the group as a whole. So they have both external and internal elements.

What is internal and external element mean?

- ✓ **Internal Aspect:** This awareness of, and support for, a social rule by the group members. (for instance the follower of Orthodox Christian church knows about the rules of the church and for instance they prohibit one Christian not to enter in to the church with his shoes)
- ✓ **External Aspect:** The fact that something is a social rule will be observable by anyone looking at the group from outside. (in the above example the followers of other religion, for instance Muslims knows that Christians cannot enter in to the church with their shoes)

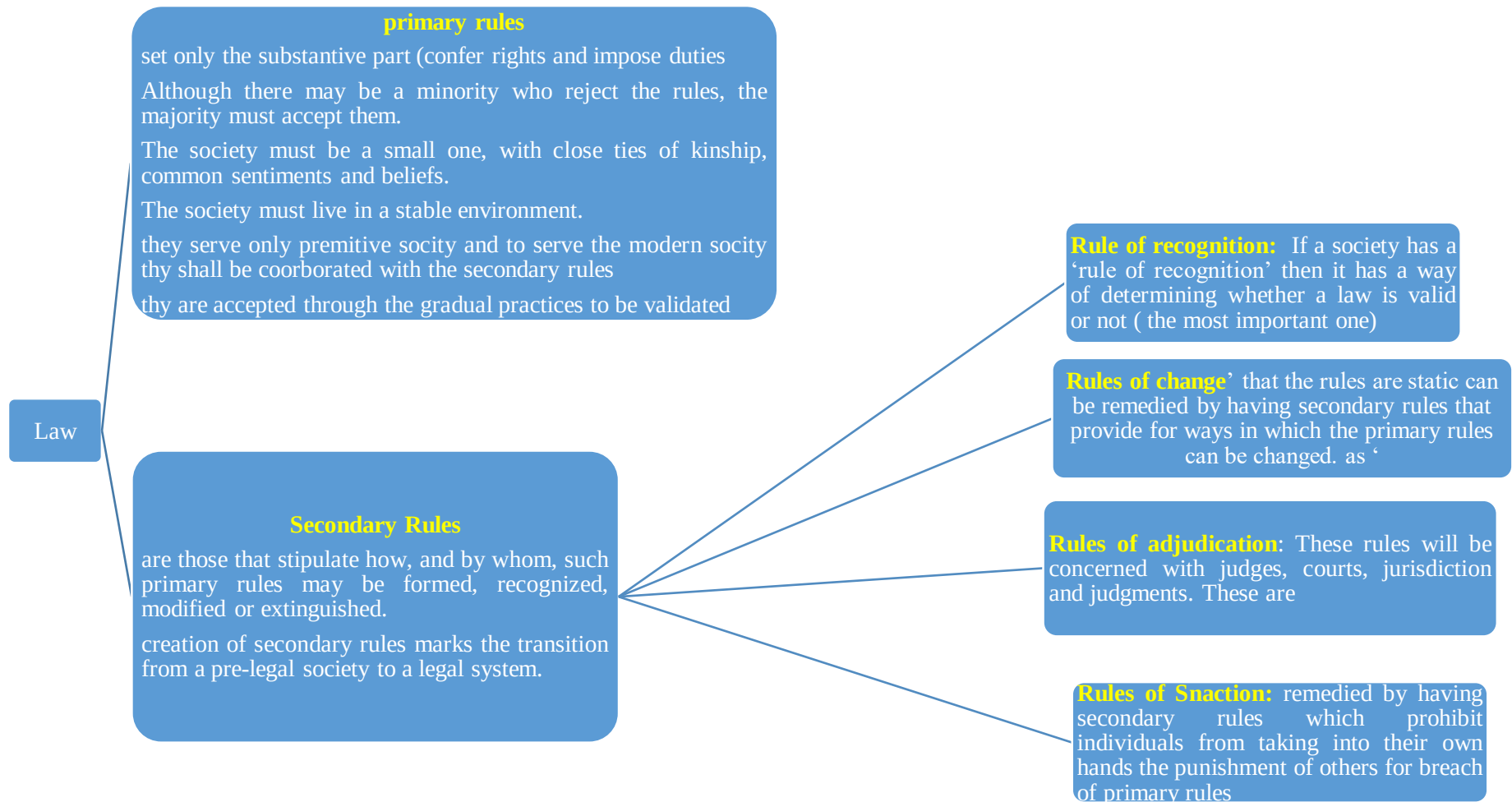
What are the kinds of social rules?

- ✓ Social rules are of two kinds.
 - a) **Social conventions**, for example, rules of etiquette or rules of correct speech. These are more than habits, as a group strives to see that the rules are observed, and those who break them are criticized.
 - b) **Obligatory social Rules:** A rule that an insistent demand that members of the group conform, and when there is great pressure brought to bear on those who break the rule, or threaten to do so. They are regarded as important because they are believed to be necessary to maintain the very life of the society, or some highly prized aspect of it. E.g. keep promise; don't involve in violence and etc...
They are further classified in to two;
 - i. **Rules which form part of the moral code of the society concerned:** are moral obligations may be wholly customary in origin. There may be no central body responsible for punishing breaches of such rules, the only form of pressure for conformity being a hostile reaction (stopping short of

physical action) towards a person who breaks the rule. The pressure for conformity may take the form of words of disapproval, or appeals to the individual's respect for the rule broken. The pressure may rely heavily on inducing feelings of shame, remorse or guilt in the offender.

- ii. **Rules which take the form of law** – even if a rudimentary or primitive kind of law. A rule will come into this category if the pressure for conformity includes physical sanctions against a person who breaks the rule – even if the sanctions are applied, not by officials, but by the community at large.

What are the kinds of rules which takes the forms of law?



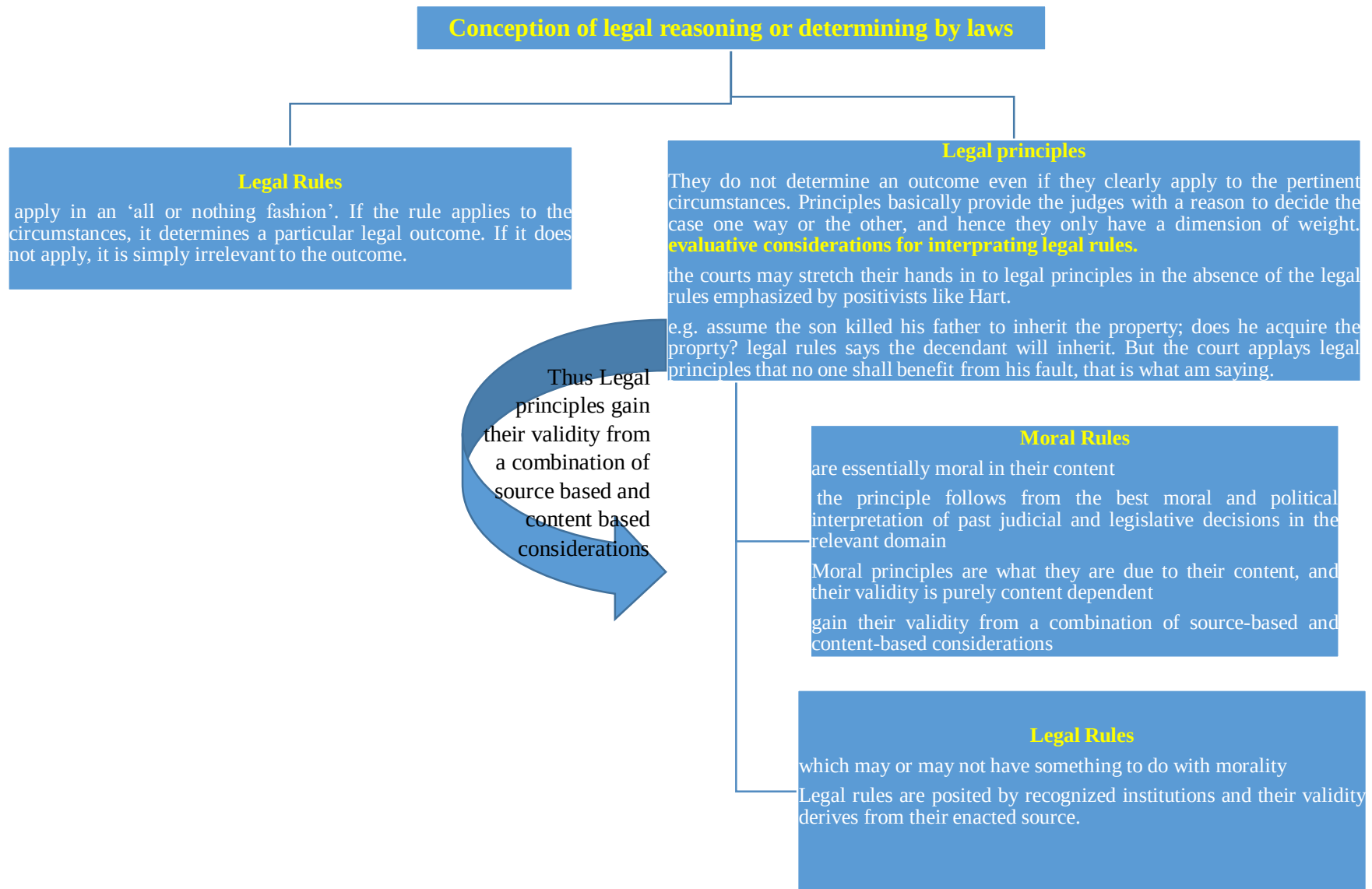
Hart and Kelsen

- ✓ There are, of course, clear parallels between Hart's rule of recognition as the source of legal validity and Kelsen's basic norm.

Issue	Kelsen	Hart
Similarity	1. They both serve the same vital function in grounding the positivist interpretation of the idea of a legal system. 2. The rule of recognition, like the basic norm, is the linchpin which gives the system unity, and every other rule must be referred to it.	1. They both serve the same vital function in grounding the positivist interpretation of the idea of a legal system. 2. The rule of recognition, like the basic norm, is the linchpin which gives the system unity, and every other rule must be referred to it.
Difference	1. a Kelsen-style norm, or 'ought-statement' and are a hypothetical norm which is presupposed by all legal activity 2. Basic norm lies outside of the system. 3. Its validity being unchallengeable, for Kelsen because basic norms are an improvable first step. 4. they are presupposed and they does not need any acceptance	1. Hart's basic rule is a (secondary) rule of law As such, it is a social fact, 2. As a social fact and a rule of law, it is itself a part of the legal system 3. Its validity being unchallengeable For Hart, it is a meaningless question to ask whether or not the rule of recognition is valid. Legal validity is measured against this basic rule of law; it cannot be measured against itself. 4. its validity is based on the acceptance

Dworkin's criticism on Hart/Positivism

- ✓ As opposed to the separation thesis, the idea that the conditions of legal validity are at least partly a matter of the moral content of the norms is articulated in a sophisticated manner by Ronald Dworkin's legal theory.
- ✓ He does not maintain that morally acceptable content is a precondition of a norm's legality. His core idea is that the very distinction between facts and values in the legal domain, between what the law is and what it ought to be, is much more blurred than Legal Positivism would have it: Determining what the law is in particular cases inevitably depends on moral-political considerations about what it ought to be.
- ✓ The falsehood of Legal Positivism resides in the fact that it is incapable of accounting for the important role that legal principles play in determining what the law is. Legal positivism envisaged, Dworkin claimed, that the law consists of rules only.

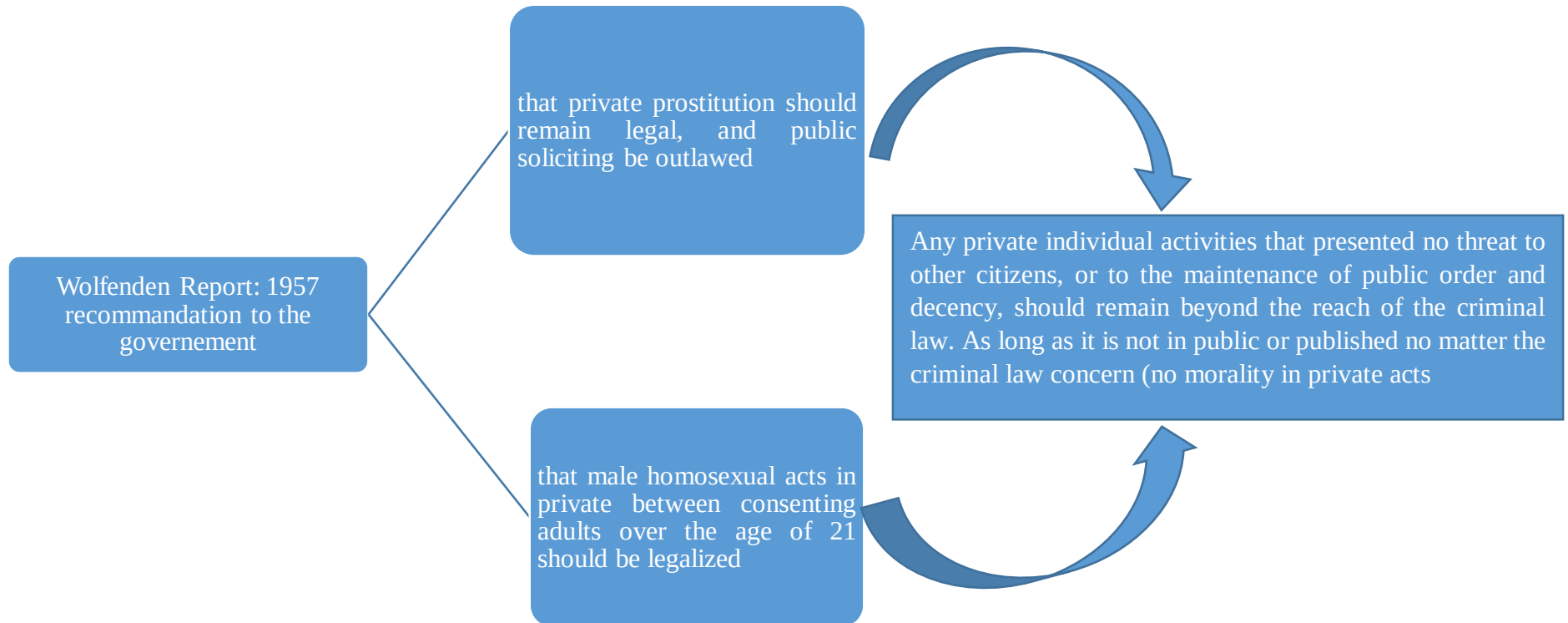


- ✓ Needless to say, if such an account of legal principles is correct, the separation thesis can no longer be maintained. But many legal philosophers doubt that there are legal principles of the kind Dworkin envisaged.
- ✓ However, in most standard instances, the law can simply be understood, and applied, without the mediation of interpretation.

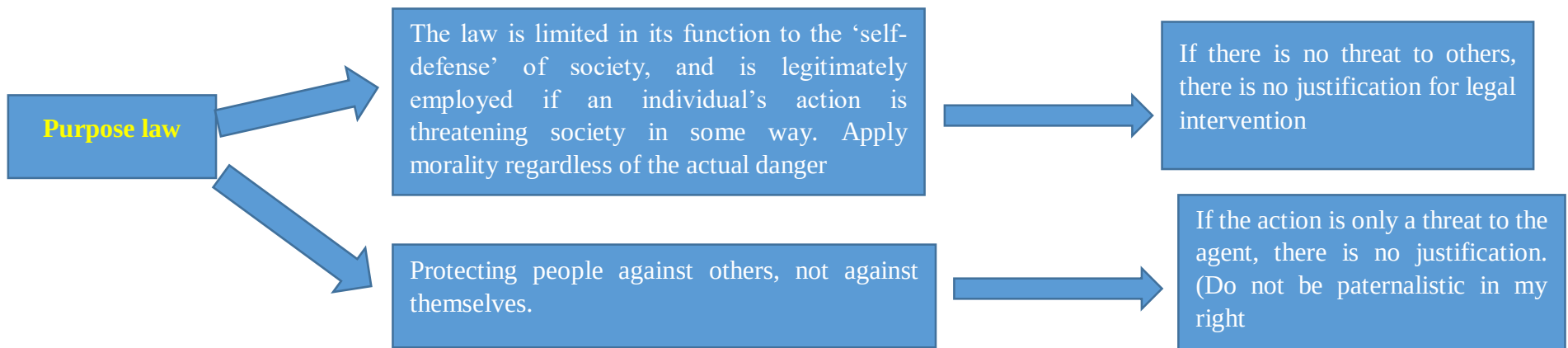
Law and Morality: Hart/Devlin debate (Enforcement of morality by Law)

Whether the law should enforce morality or not?

A. Liberalization and the Wolfenden Report



John Stuart Mill and Liberty (Harm Principle)



Lord Patrick Devlin attack on Wolfenden Report

- ✓ Devlin defended society's right to pass judgment on all matters of morality, but especially on what he described as "society's constitutive morality".

Attack on the legality of homosexuality based on consent and on the age of majority (21 years old)

- ✓ Consent is not a sufficient ground for an action to be private morality and thereby a private issue, not the law's (or the society's) concern. In effect, it means consent can overcome any immoral action.
- ✓ Devlin argues that this is inconsistent with the fundamental principles of criminal law. The criminal law any country has concerned itself with moral principles. Subject to certain exceptions inherent in the nature of particular crimes, the criminal law has never permitted consent of the victim to be used as a defense.
 - ✚ For example, consent of the victim is not a defense in a murder charge. That is why the victim cannot forgive the aggressor in a criminal act and require the prosecutor to drop the case. Consent and forgiveness are irrelevant.
 - ✚ Other examples are; criminal offences like suicide, attempt to suicide, euthanasia (killing another at his own request), incest between brother and sister, abortion, duel etc.
- ✓ *All the above may be acts committed privately and between consenting adults. But they are still crimes and prohibited by law. Because, according 'it is an offence against society....there are certain standards of behavior or moral principles which society requires to be observed; and the breach of them is an offence not merely against the person who is injured but against society as a whole'.*
- ✓ *This shows, according to Devlin, that the criminal law is based on moral grounds and the function of the law is enforcement of moral principles and nothing else.*

Why should a private action be considered as an issue of public morality that concerns the society?

- ✓ Lord Devlin has framed three questions addressed to himself to answer:
 - a. Has society the right to pass judgment at all on matters of morals? *Yes, there is a public morality. Society is a community of ideas. These ideas could be moral or political. These ideas are foundations or bondages to the unity of the society.* E.g. marriage (prohibition of bigamy or polygamy is based on the opinion of community. What is more, the prohibition of adultery. So no one can escape from the opinion of the society.
 - b. If society has the right to pass judgment, has it also the right to use the weapon of the law to enforce it? *Yes, if society has the right to make a judgment and has it on the basis that a recognized morality is necessary to society as, say, a recognized government, then society may use the law to preserve morality in the same way as it uses it to safeguard anything else that is essential to its existence.*
 - c. In what circumstances should the state exercise its power? Since society/government cannot forbid every kind of immoral act (e.g refusing to give money to poor), *it shall adopt selective mechanism and the reasonable man standard not a rational man standard.*

Restraints to Reasonable Man to Criminalize Illegal Acts

- a. **Nothing should be punished by law that does not lie beyond the limits of tolerance**
- b. **Laws should be slow in matters of moral:** tolerance can be shifted soon, the legislature shall act slowly.

c. As far as possible privacy should be respected

Hart's reply to Devlin

- ✓ Hart took care to distinguish between coercion for the sake of enforcing society's moral norms, and coercion for the agent's own good. According to the version of liberalism which Hart was developing in these lectures, it is only the latter form of state coercion which is to some extent defensible.

Hart	Davlin	Mill
Society does have the right to prevent its members from harming themselves as much as from harming others, but it does not have the right to enforce conformity with collective moral standards.	Society has the right to prevent the right to provide moral judgments. since the society is the opinion of morals or morality are derived from the opinion of the society	In private matters no one shall concerns as long as it does not harm others
the proper reach of the criminal law stops at the point of tangible harm as such - to self or others	The criminal law stops when the society does not provide certain act is immoral or when the community legalized it.	Criminal law stopped only at the point of harming others.
the right to follow one's own lifestyle; what he rejects is his insistence that this right has no internal limits	Everyone can be free to live as he wish as long as its act is not subject to the moral judgment of the society.	Everyone has the right to follow one's own lifestyle
Laws for people's own protection (e.g. to prohibit one from using drugs for the sake of his safety) and laws which merely seek to enforce moral standards (e.g. to prohibit one from committing private homosexual activity (paternalistic). among which only the 1 st one shall be prohibited	both are immoral and shall be forbidden	
Society cannot only survive individual differences in morality but can profit from them, though he does not specify exactly how it might profit. The idea is society can live with its differences. We can call it in our own way as unity in diversity	Once society is actually disappearing, and being replaced by another. That law should preserve existing morality, not that legal enforcement of morality is good in and of itself.	
A society's morality can change without the society disappearing and democracy does not require the enforcement of uniform morality	opposite	

N.B. Hart developed his own argument for the partial enforcement of morality based on a distinction he drew between immorality which affronts public decency and that which merely 'distresses' others based on the knowledge that immoral acts are taking place.

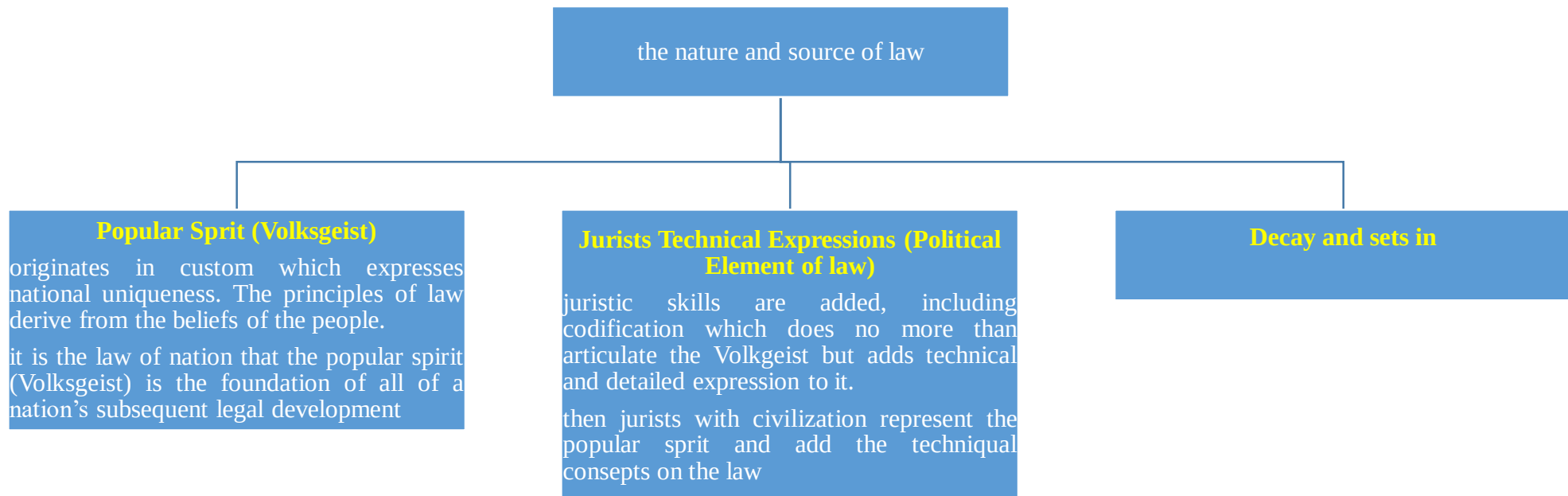
UNIT FIVE

HISTORICAL AND SOCIOLOGICAL LEGAL THEORY

A. Historical School

- ✓ Theories of von Savigny and of Maine together represent two very different approaches to an understanding of law and the legal process in historical school of thought;

1. The Spirit of the People: Savigny



What is the contribution of Savigny theory?

- ✓ It serves as the modern law by separating the political element and technical element of law.

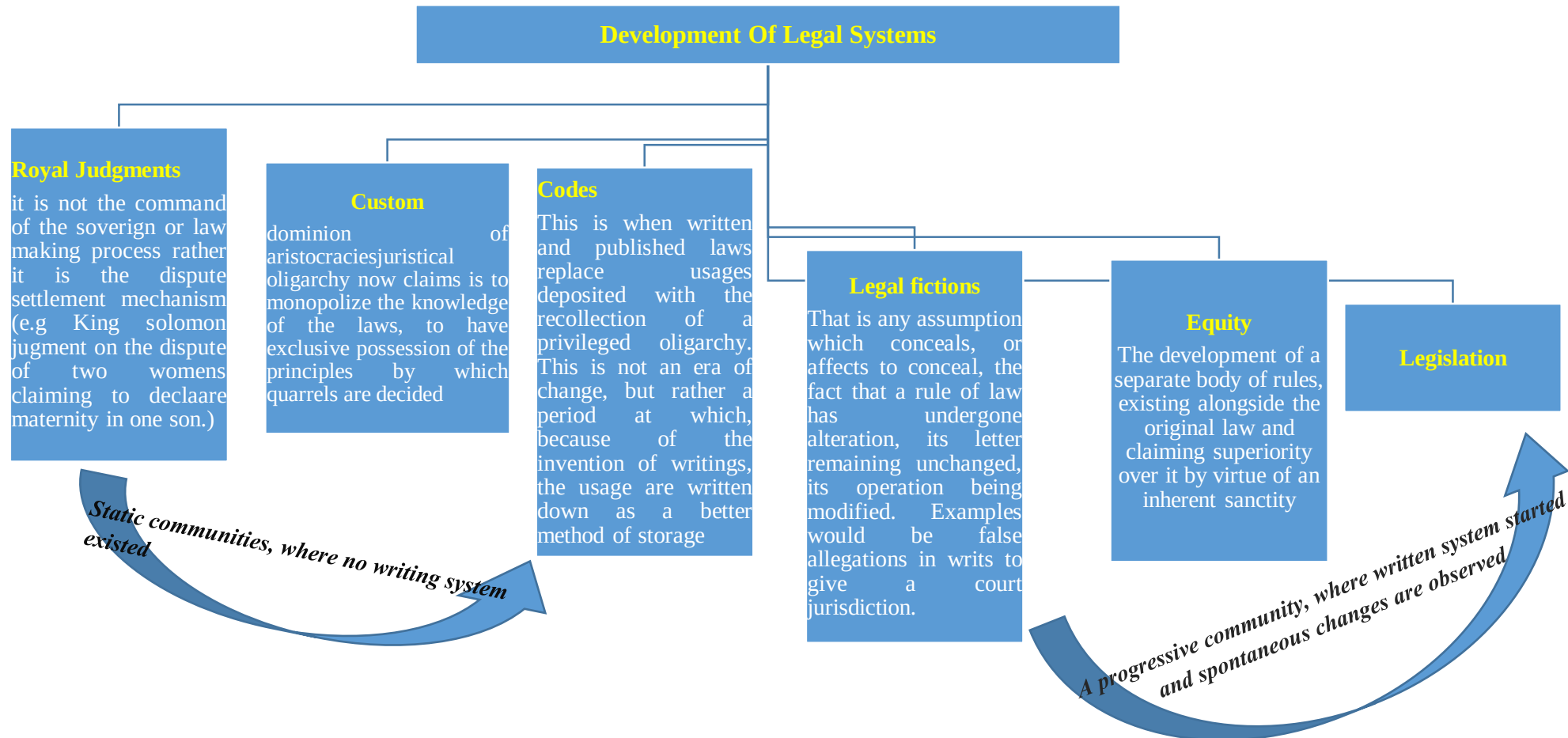
Discuss on the criticism on Savagney theory?

- ✓ The whole concept of the work, the spirit of the people, is difficult to accept for any less than homogenous, or pluralistic, society. But it is relatively rare to find societies of which the same can be said. Some fundamentalist Muslim societies might fit his model.

2. The Changing process of Ancient Law: Henry Maine

What is the departure of Henry Maine from the Savigny origin of law?

- ✓ Maine partly accepted Savigny's view of the importance of primitive legal institutions. However, Maine departed from Savigny in two important respects:
 - a. he believed in stages of legal evolution, in which the primitive ideas might be discarded; and
 - b. he sought to discover by comparative studies of different systems of law the ideas which they had in common



N.B. Maine theory is the modern jurisprudence basis to day. However, there is a doubt that primitive societies pass on the 1st three stages or not. Since there are instances where primitive societies used legislations.

B. Sociological School

1. Living Law: Eugen Ehrlich

Where is the sources of law?

- ✓ At present as well as at any other time, the center of gravity of legal development lies not in legislation, nor in juristic science (jurisprudence), nor in judicial decision, but in society itself.
Provided that; earlier legal theories that recognize law as a sum of statutes and judgments gave an inadequate view of the legal reality of a community.

What is the difference between the decision norms and social norms?

- a. **Social Norms:** govern the life in a society and can be regarded in popular consciousness as a law. Its essence is not dispute and litigation, but peace and co-operation.
- b. **Norms for decision:** regulate only those disputes that are brought before a judicial or other tribunal.
- ✓ *Thus, Living law is a framework for the routine structuring of social relationships. Its source is in the many different kinds of social associations in which people co-exist.*

If so, what are the sources of Social norms?

- ✓ The living law is the law which dominates life itself even though it has not been posited in legal propositions. The source of our knowledge of this law is,
 - a. The modern legal document;
 - b. Direct observation of life, of commerce, of customs, and usages, and of all associations existed before the positive law.

N.B. his theory was the base for American Jurists to propose legal realism.

2. Law in Action: Roscoe Pound

- ✓ What they want to discover about legal rules is what concrete effects in social reality they aim to produce as soon as they become “law in action” by the behavior of judges or administrative authority.
- ✓ Law is in the first place a means for the ordering of social interests, and the judge in balancing out these interests should be a “social engineer” who can only perform his task properly if he has an accurate knowledge of the actual circumstances on which his decision will have an effect.
- ✓ Pound in his first works attacked the existing legal education which depended more on theoretical concepts and only inward looking. He insisted that teachers of law should have a wider knowledge: *The modern teacher of law should be a student of sociology, economics, and politics as well to teach what really the law seems in practice.*

What is the central idea of Interest Theory of Roscoe Pound?

- ✓ *Theory of Interest, he defines an interest as a claim or want or desire of a human being or group of human beings which the human being or group of human beings seeks to satisfy, and of which, therefore, the ordering of human relations in civilized society must take account.*
- ✓ Pound classifies individual interests as;
 - a. Interests of personality; (includes the physical person, honour and reputation, and belief and opinion).
 - b. Interests in the domestic relationships; and
 - c. Interests of substance.

What are the unique features of sociological schools from other jurisprudence school of thought?

If we compare sociological jurisprudence with the concept of the three other (Natural, Analytical, and Historical) schools the following characteristics may be emphasized:

- a. It is concerned more with the working of the law than its abstract content.
- b. It regards the law as a social institution capable of improvement by intelligent human effort, and it considers that it is the sociologist jurist's duty to discover the best means of aiding and directing such effort.
- c. It emphasizes the social purposes which law subserves rather than its sanction.
- d. It looks upon legal doctrines, rules and standards functionally and regard the form as a matter of means only.

Unit Six

Legal Realism

Legal realism attempts to describe the law without idealizing it, to portray the law as it is – not how it should be or how it was depicted

A. American Realists

1. Pragmatic Approach

Why Realist and what was their claims?

- ✓ Realists was against school of formalism, which concentrated on logical and a priori reasoning, and was thus thought to be only theoretical and not practical or pragmatic
- ✓ Formalism, so the realist thought, had no regard to the facts of life experience. Realism attempted to be both practical and pragmatic, rejecting theoretical and analytical approaches to jurisprudential questions.

What is the central idea of pragmatism?

- ✓ Pragmatism has, thus, stimulated a new approach to law, that “of looking towards last things, fruits, consequences or results. Generally speaking, how the rule of law works, not what they are on paper, is the theme of pragmatic approach to legal problems.

- ✓ A pragmatist turns away from the abstraction and insufficiency, from verbal solutions, from bad a priori reasons, from fixed principles, closed systems, and pretended absolute and origins. He turns towards concreteness and adequacy, towards facts, towards actions and towards power.
- ✓ That means the empiricist temper regnant and rationalist temper sincerely given up. It means the open air and the possibilities of nature, as against dogma, artificiality, and the pretence of finality in truth. (William James)

Law as prophesy of the court: Oliver W. Holmes

- ✓ A prophesies of what the court will do in fact, and nothing more pretentious, are what I mean by the law.
- ✓ The life of the law has not been logic, it has been experience

A. On the Nature of Law

- ✓ For legal realism the two most influential Holmes' ideas were his prediction concept of law and his view that policies and prejudices have more to do with judicial decisions than the logical application of rules.
- ✓ The actual life of the law has not been logic: it has been experience. The felt necessities of the times, the prevalent moral and political theories, institutions of public policy, avowed or unconscious, even the prejudices which judges share with their fellow men, have had a good deal more to do than the syllogism in determining the rules by which men should be governed.
E.g. bad man as litigant hire lawyer to know the practical consequences of the law in his act not for theoretical aspect of law

B. On morality

- ✓ Legal positivists, such as Austin argued that without the distinction between law and morality, legal thinking became confused. Holmes agreed with the legal positivists on this point.
- ✓ Indeed, it was Holmes's belief that if all words with moral connotation were eliminated from the law, the law would gain in precision.

C Criticism

The limitation of this notion that the essence of law consists of predictions have been well explored. However,

- This approach disregards the rules and laws that establish the judiciary itself.
- It also left out multitude rules particularly in the field of public administrative law that are properly described as law but which do not lie in the field of litigation and therefore are not a matter of prediction.

Centrality of the judge: John Chipman Gray

A. On nature of Law

- ✓ J. C. Gray, who regarded all law as judge-made law. Statutes (legislations made by parliament) are not laws by virtue of their enactment. They only become law when applied by a decision of the courts. Only then does a legislative enactment spring to life and acquire actual force.

- ✓ Legislation is therefore no more than a source of law. According to his view, it is not a law until it had been interpreted by the courts, for “the courts put life into the dead words of the statutes.”

If so, what is the difference between a law and the law?

- ✓ **A law:** ordinarily means a statute passed by the legislature of a state. **This means all of them are not binding. The judge’s choice is what matters.**
- ✓ **‘The law:** is the whole system of rules applied by the courts. Thus, Gray considered ‘a law’, that is, a statute passed by the legislature (as well as precedents, custom, and morality) as source of the law (both in case of new cases and to determine based on previous decisions) not the law itself.

B. On Positivist

- ✓ Gray warmly accepts the sharp distinction of science of law and other forms of ideologies. Since the recognition of the truth that the law of a state or other organized body is not an ideal, but something which actually exists. It is not that which is in accordance with religion, or nature, or morality; it is not that which it ought to be. But that which it is.

C. Criticism

- a. He was led to the curious position that the rules laid down by a court in deciding a case are “the law” for the case but are only sources of the law for the “next case.”
- b. Gray did not classify or differentiate them from other lesser sources of law such as, opinions of legal experts and principle of morality
- c. One does not go to a court in order to incorporate a company, and yet the procedures and requirements for doing that are prescribed in statute.

Rule Skepticism: Karl Llewellyn

A. On the nature and purpose of law

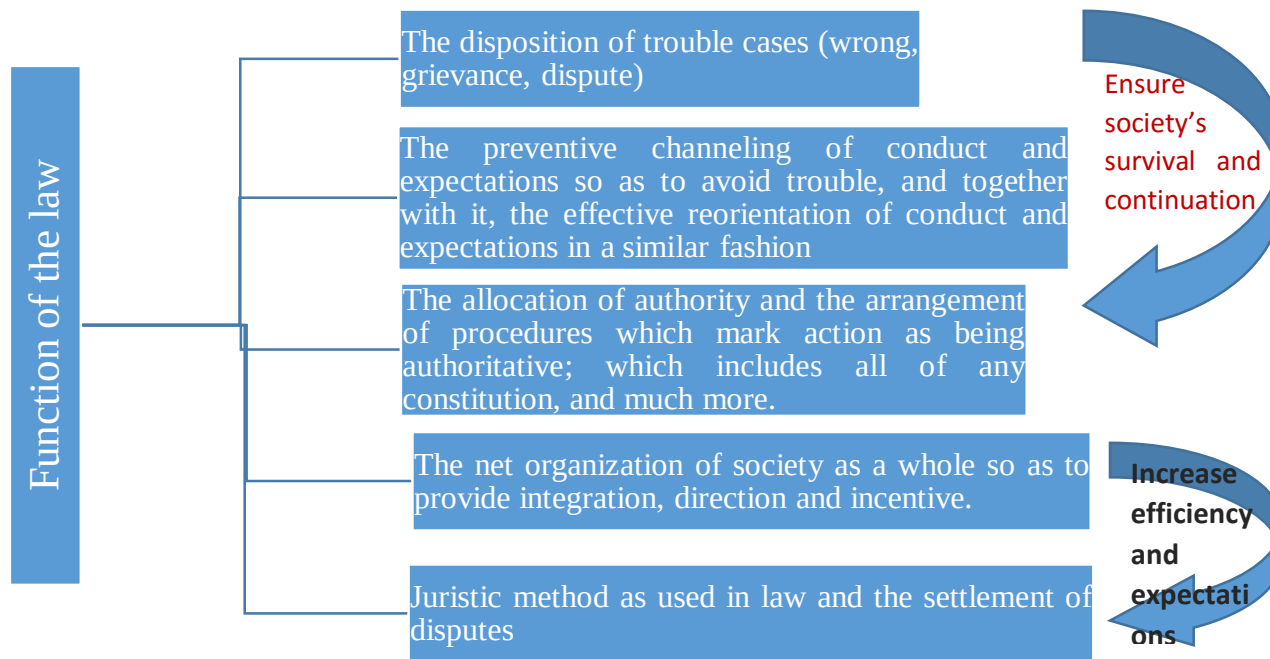
- ✓ Holmes and gray gave the power of making law to the judges of higher courts, but Llewellyn widens it to all officers of the law. In fact, within the decade, Llewellyn subsequently disagreed with himself, and suggested that no definition of law has really proved adequate to the task.
- ✓ *Law for Llewellyn was a means for the achievement of social ends and for this reason it should not be backward looking for its development but should be forward looking in terms of moulding the law to fit the current and future needs of society.*

B. Rule Skepticism

- ✓ Llewellyn is described as “rule skeptic” in that he distrusts rules as laws. Jerome Frank (another American jurist) called this aspect of realism as ‘rule skepticism’ – skepticism as to whether rules, if they exist, in practice play the part traditionally ascribed to them.
- ✓ For Llewellyn, legal rules do not describe what the courts are purporting to do nor do they describe how individuals concerned with the law behave. Legal rules as found in books and emphasized in judicial decisions do not accord with reality.

C. Function of the Law

- ✓ In one of his works, *My Philosophy of Law*, Llewellyn described the basic functions of law as ‘law-jobs.’ He lists them in five groups as follows:



Fact Skepticism: Jerome Frank

A. on Rule skepticism

- ✓ According to rule skepticism, those formal rules found in judicial decisions and in books, were unreliable as guides in the prediction of decisions.
- ✓ Frank is saying that he has a doubt if the judge can do all the research before decision. In the common law a judge has to read a huge amount of case books and maybe also statutes.
- ✓ Jerome Frank, is saying that judges in reality do not go all the way. They decide first based on the arguments and evidences provided by both parties, and then search for statute or case to support his reasoning.
- ✓ Thus, the main thrust of Frank's attack was directed against the idea that ***certainty could be achieved through legal rules***. This, in his view, was absurd.

B. On Fact Skepticism

- ✓ Judge Frank has persuasively argued that the greatest uncertainties of the judicial process are not in the law-finding but in the fact finding part; or at least, primarily in the witness-jury part.

- ✓ Hence, the chief reason why legal rules do not more adequately perform the principal tasks they are supposed to do –guide and predict the decisions of trial courts-is, he maintains, because of the uncertainty as to what facts the trier of fact (especially the jury) will find as the ones to which the legal rule or principle is to be applied.
- ✓ The rule skeptics see only the practice of the higher courts, the appellate and supreme courts. Frank underlines that in the lower courts prediction of the outcome litigation was not possible. The major cause of uncertainty is not the legal rule, but the uncertainty of the fact finding process.

Characters of Realism (Common Features of Realist)

- a. The conception of law in flux, of moving law, and of judicial creation of law.
- b. The conception of law as a means to social ends not as an end in itself; so that any part needs constantly to be examined for its purpose, and for its effect, and to be judged in the light of both and of their relation to each other.
- c. The conception of society in flux, and in flux typically faster than the law, so that the probability is always given that any portion of law needs re-examination to determine how far it fits the society it purports to serve.
- d. The temporary divorce of Is and Ought for purpose of study. By this Llewellyn means that whereas appeal must always be made to value judgments in order to determine objectives for inquiry itself into what Is, the observation,
- e. Distrust of traditional rules and concepts insofar as they purport to describe what either courts or people are actually doing. Here, the emphasis is upon rules as ‘generalized predictions of what courts will do.’
- f. Distrust of the theory that traditional prescriptive rule-formulations are the heavily operative factor in producing court decisions. This involves the tentative adoption of the theory of rationalization for the study of options.
- g. The belief in the worthwhile-ness of grouping cases into narrower categories than has been the practice in the past.
- h. An insistence on evaluation of any part of the law in terms of its effect, and an insistence on the worthwhile-ness of attempting to ascertain these effects.
- i. Insistence on sustained and pragmatic attack on the problems of law along any of these lines.

Reference

- Daniel W/Gabriel Hassen, (2008). *JURISPRUDENC*, Ethiopian Justice and Legal Research Institute, Teaching Material.

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Thanks God..... All are yours....